

HOUSE No. 4601

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, October 14, 2025.

The committee on Ways and Means, to whom was referred the message from Her Excellency the Governor submitting requests for making appropriations for the fiscal year 2025 to provide for supplementing certain existing appropriations and for certain other activities and projects (House, No. 4429) reports, in part, recommending that the accompanying bill (House, No. 4601) ought to pass [Total Appropriation: \$2,256,596,732.00].

For the committee,

AARON MICHLEWITZ.

HOUSE No. 4601

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act making appropriations for the fiscal year 2025 to provide for supplementing certain existing appropriations and for certain other activities and projects.

Whereas, The deferred operation of this act would tend to defeat its purposes, which are to make supplemental appropriations for fiscal year 2025 and to make certain changes in law, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. To provide for supplementing certain items in the general appropriation act
2 and other appropriation acts for fiscal year 2025, the sums set forth in section 2 are hereby
3 appropriated from the General Fund or the Transitional Escrow Fund established in section 16 of
4 chapter 76 of the acts of 2021, as amended by section 4 of chapter 98 of the acts of 2022, unless
5 specifically designated otherwise in this act or in those appropriation acts, for the several
6 purposes and subject to the conditions specified in this act or in those appropriation acts, and
7 subject to the laws regulating the disbursement of public funds for the fiscal year ending June 30,
8 2025. These sums shall be in addition to any amounts previously appropriated and made
9 available for the purposes of those items. These sums shall be made available through the fiscal
10 year ending June 30, 2026.

11 SECTION 2.

12 JUDICIARY

13 0321-0001 Commission on Judicial Conduct.....\$100,000

14 *Committee for Public Counsel Services*

15 0321-1520 Indigent Persons Fees and Court Costs..... \$2,500,000

16 DISTRICT ATTORNEYS

17 *Suffolk District Attorney's Office*

18 0340-0100 Suffolk District Attorney.....\$700,000

19 0340-8908 District Attorneys' Wide Area Network.....\$90,663

20 EXECUTIVE OFFICE OF ADMINISTRATION AND FINANCE

21 1595-6153 No Cost Calls Trust Fund Transfer.....\$12,500,000

22 EXECUTIVE OFFICE OF EDUCATION

23 *Department of Elementary and Secondary Education*

24 1596-2422 School Meals..... \$12,000,000

25 Education and Transportation Fund...100%

26 EXECUTIVE OFFICE OF ENERGY AND ENVIRONMENTAL AFFAIRS

27 *Office of the Secretary*

28 1599-0093 Clean Water Trust Contract Assistance.....\$6,779,246

29 EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

30 *Office of the Secretary*

31 4000-0700 MassHealth Fee for Service Payments..... \$2,046,164,359

32 EXECUTIVE OFFICE OF PUBLIC SAFETY AND SECURITY

33 *Department of State Police*

34 8100-1001 Department of State Police..... \$3,500,255

35 *Department of Correction*

36 8900-0001 Department of Correction Facility Operations..... \$7,184,865

37 LEGISLATURE

38 *House of Representatives*

39 9600-0000 House of Representatives..... \$8,100,000

40 SECTION 2A. To provide for certain unanticipated obligations of the commonwealth, to
41 provide for an alteration of purpose for current appropriations, and to meet certain requirements
42 of law, the sums set forth in this section are hereby appropriated from the General Fund or the
43 Transitional Escrow Fund established in section 16 of chapter 76 of the acts of 2021, as amended
44 by section 4 of chapter 98 of the acts of 2022, unless specifically designated otherwise in this
45 section, for the several purposes and subject to the conditions specified in this section, and
46 subject to the laws regulating the disbursement of public funds for the fiscal year ending June 30,

2025. Except as otherwise stated, these sums shall be made available through the fiscal year ending June 30, 2026.

EXECUTIVE OFFICE FOR ADMINISTRATION AND FINANCE

Department of Revenue

1233-1818 For fiscal year 2023 and fiscal year 2024 payments due to cities and towns pursuant to section 5 of chapter 64N of the General Laws..... \$1,250,000

Marijuana Regulation Fund...100%

Reserves

1599-1214 For a reserve for expansion, upgrades or enhancements to staffing, operations or infrastructure for new and existing facilities that treat men with an alcohol or substance use disorder under sections 1 and 35 of chapter 123 of the General Laws; provided, that the secretary of administration and finance may transfer funds from this item to state agencies as defined in section 1 of chapter 29 of the General Laws..... \$14,000,000

1599-0300 For a reserve to fund an awareness campaign on new federally imposed reporting requirements and vaccine outreach and education efforts; provided, that not less than \$10,000,000 shall be expended for Health Care for All, Inc. to work with community-based organizations to conduct health coverage enrollment assistance in targeted areas at risk of losing coverage due to new federally imposed reporting requirements, as well as support vaccine outreach and education efforts..... \$10,000,000

OFFICE OF THE COMPTROLLER

SECTION 2B. To provide for supplementing certain intragovernmental chargeback authorizations in the general appropriation act and other appropriation acts for fiscal year 2025, to provide for certain unanticipated intragovernmental chargeback authorizations, to provide for an alteration of purpose for current intragovernmental chargeback authorizations and to meet certain requirements of law, the sum set forth in this section is hereby authorized from the Intragovernmental Service Fund established in section 2Q of chapter 29 of the General Laws for the several purposes specified in this section or in the appropriation acts and subject to the provisions of law regulating the disbursement of public funds for the fiscal year ending June 30, 2025. This sum shall be in addition to any amounts previously authorized and made available for the purposes of this item. These sums shall be made available through the fiscal year ending June 30, 2026.

TREASURER AND RECEIVER-GENERAL

Office of the Treasurer and Receiver-General

0699-0018	Agency Debt Service Programs.....	\$21,000,000
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SECTION 2C.I. For the purpose of making available in fiscal year 2026 balances of appropriations which otherwise would revert on June 30, 2025, the unexpended balances of the appropriations listed below, not to exceed the amount specified below for each item, are hereby re-appropriated for the purposes of and subject to the conditions stated for the corresponding item in sections 2 or 2F of chapter 140 of the acts of 2024. However, for items which do not appear in said sections 2 or 2F of said chapter 140 of the general appropriation act, the amounts in this section are re-appropriated for the purposes of and subject to the conditions stated for the corresponding item in sections 2 or 2A of this act or in prior appropriation acts. Amounts in this

108 section are re-appropriated from the fund or funds designated for the corresponding item in said
109 sections 2 or 2F of said chapter 140; provided, however, that for items which do not appear in
110 said sections 2 or 2F of said chapter 140, the amounts in this section are re-appropriated from the
111 fund or funds designated for the corresponding item in sections 2 through 2F of this act or in
112 prior appropriation acts. The unexpended balance of each appropriation in the Massachusetts
113 management accounting and reporting system with a secretariat code of 01 or 17 is hereby re-
114 appropriated for the purposes of and subject to the conditions stated for the corresponding item
115 in said section 2 of said chapter 140. The sums reappropriated in this section shall be in addition
116 to any amounts available for said purposes.

117 JUDICIARY

118 *Supreme Judicial Court*

119 0320-0003 Supreme Judicial Court..... \$400,000

120 *Commission on Judicial Conduct*

121 *Appeals Court*

122 0322-0100 Appeals Court..... \$175,000

123 DISTRICT ATTORNEYS

124 *District Attorneys' Association*

125 0340-9111 District Attorneys' Association..... \$307,101

126 TREASURER AND RECEIVER-GENERAL

127	<i>Office of the Treasurer and Receiver-General</i>		
128	0610-2000	Welcome Home Bill Bonus Payments.....	\$600,000
129	POLICE REFORM COMMISSIONS		
130	0800-0000	Massachusetts Police Officer Standards and Training Commission.....	\$73,853
131	OFFICE OF THE CHILD ADVOCATE		
132	0930-0100	Office of the Child Advocate.....	\$200,000
133	0930-0101	Center on Child Wellbeing and Trauma.....	\$1,900,000
134	CENTER FOR HEALTH INFORMATION AND ANALYSIS		
135	4100-0060	Center for Health Information and Analysis.....	\$693,500
136	4100-0063	Betsy Lehman Center.....	\$395,450
137	EXECUTIVE OFFICE FOR ADMINISTRATION AND FINANCE		
138	<i>Health Policy Commission</i>		
139	1450-1200	Health Policy Commission.....	\$750,000
140	<i>Reserves</i>		
141	1599-4448	Collective Bargaining Reserve.....	\$34,000,000
142	EXECUTIVE OFFICE OF TECHNOLOGY SERVICES AND SECURITY		
143	1790-1700	Core Technology Services and Security.....	\$355,089

144 EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

145 *Massachusetts Commission for the Deaf and Hard of Hearing*

146 4125-0100 Massachusetts Commission for the Deaf and Hard of Hearing.....\$170,000

147 Department of Transitional Assistance

148 4400-1000 Department of Transitional Assistance Administration and Operation..\$2,813,484

149 EXECUTIVE OFFICE OF VETERANS’ SERVICES

150 *Veterans’ Services*

151 1410-0630 Agawam and Winchendon Veterans’ Cemeteries.....\$185,000

152 *Veterans’ Home in Chelsea*

153 4180-0100 Veterans’ Home in Chelsea Administration and Operations.....\$916,018

154 *Veterans’ Home in Holyoke*

155 4190-0100 Veterans’ Home in Holyoke Administration and Operations..... \$150,018

156 MASSACHUSETTS DEPARTMENT OF TRANSPORTATION

157 1596-2401 Federal Matching Funds..... \$23,000,000

158 1596-2406 Regional Transit Funding and Grants..... \$10,155,416

159 EXECUTIVE OFFICE OF ECONOMIC DEVELOPMENT

160 *Division of Insurance*

161 7006-0020 Division of Insurance.....\$1,274,008

162 *Massachusetts Marketing Partnership*

163 7008-0900 Massachusetts Office of Travel and Tourism.....\$100,000

164 EXECUTIVE OFFICE OF HOUSING AND LIVABLE COMMUNITIES

165 7004-0102 Homeless Individual Shelters..... \$2,100,000

166 EXECUTIVE OFFICE OF EDUCATION

167 *Department of Early Education and Care*

168 3000-1000 Department of Early Education and Care.....\$7,500,000

169 *Department of Elementary and Secondary Education*

170 7061-9805 Teacher Diversity Initiative \$8,300,000

171 *Department of Higher Education*

172 7066-0025 Performance Management Set Aside..... \$2,000,000

173 EXECUTIVE OFFICE OF PUBLIC SAFETY AND SECURITY

174 *Department of State Police*

175 8100-0515 New State Police Class.....\$9,600,000

176 *Department of Fire Services*

177 8324-0000 Department of Fire Services Administration.....\$560,750

178 8324-0050 Local Fire Department Projects and Grants \$250,000

179 SECTION 2C.II. For the purpose of making available in fiscal year 2026 balances of
180 retained revenue and intragovernmental chargeback authorizations which otherwise would revert
181 on June 30, 2025, the unexpended balances of the authorizations listed below, not to exceed the
182 amount specified below for each item, are hereby re-authorized for the purposes of and subject to
183 the conditions stated for the corresponding item in sections 2 through 2F, inclusive, of chapter
184 140 of the acts of 2024. However, for items which do not appear in said sections 2 through 2F,
185 inclusive, of said chapter 140, the amounts in this section are re-authorized for the purposes of
186 and subject to the conditions stated for the corresponding item in sections 2 through 2F,
187 inclusive, of this act or in prior appropriation acts. Amounts in this section are re-authorized
188 from the fund or funds designated for the corresponding item in sections 2 through 2F, inclusive,
189 of the general appropriation act; provided, however, for items which do not appear in sections 2
190 through 2F, inclusive, of the general appropriation act, the amounts in this section are re-
191 authorized from the fund or funds designated for the corresponding item in sections 2 through
192 2F, inclusive, of this act or in prior appropriation acts. The sums re-authorized in this section
193 shall be in addition to any amounts available for those purposes.

194 MASSACHUSETTS COMMISSION AGAINST DISCRIMINATION

195 0940-0103 Equal Employment Opportunity Commission Retained Revenue..... \$1,205,504

196 EXECUTIVE OFFICE FOR ADMINISTRATION AND FINANCE

197 *Operational Services Division*

198 1775-0800 Chargeback for Purchase Operation and Repair of State Vehicles \$200,000

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EXECUTIVE OFFICE OF ECONOMIC DEVELOPMENT

Office of the Secretary

7002-0018 Chargeback for Economic Development IT Costs.....\$3,846,468

EXECUTIVE OFFICE OF PUBLIC SAFETY AND SECURITY

Department of Correction

8900-0021 Chargeback for Prison Industries and Farm Program..... \$430,000

SECTION 3. Section 44 of chapter 7C of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in lines 1 and 11, each time it appears, the figure “58” and inserting in place thereof, in each instance, the following figure:- 57.

SECTION 4. Section 46 of said chapter 7C, as so appearing, is hereby amended by striking out, in line 21, the figure “58” and inserting in place thereof the following figure:- 57.

SECTION 5. Section 51 of said chapter 7C, as so appearing, is hereby amended by striking out, in line 29, the figure “58” and inserting in place thereof the following figure:- 57.

SECTION 6. Section 53 of said chapter 7C, as so appearing, is hereby amended by striking out, in line 4, the figure “58” and inserting in place thereof the following figure:- 57.

SECTION 7. Section 54 of said chapter 7C, as so appearing, is hereby amended by striking out, in lines 8, 29 and 45, each time it appears, the figure “58” and inserting in place thereof, in each instance, the following figure:- 57.

SECTION 8. Section 56 of said chapter 7C, as so appearing, is hereby amended by striking out, in line 4, the figure “58” and inserting in place thereof the following figure:- 57.

SECTION 9. Section 57 of said chapter 7C, as so appearing, is hereby amended by striking out, in line 3, the figure “58” and inserting in place thereof the following figure:- 57.

SECTION 10. Section 25 of chapter 10 of the General Laws, as so appearing, is hereby amended by inserting after the word “appropriation”, in line 13, the following words:- ; provided, however, that the commission may enter into contracts or group agreements for lottery games not currently or previously authorized by the commission, resulting in a contractor or licensor to be paid a specified percentage of net or gross revenues of such game, and such payments shall not be subject to appropriation.

SECTION 11. Chapter 23A of the General Laws is hereby amended by inserting after section 13V the following section:-

Section 13W. (a) There shall be established and set up on the books of the commonwealth a separate, non-budgeted special revenue fund known as the Sports and Entertainment Events Fund, which shall be administered by the office of travel and tourism established in section 13F. The fund shall be credited with: (i) revenue from appropriations and other money authorized by the general court and specifically designated to be credited to the fund; (ii) funds from public and private sources, including, but not limited to, gifts, grants and donations; and (iii) interest earned on money in the fund. The unexpended balance in the fund at the end of a fiscal year shall not revert to the General Fund and shall remain available for expenditure in subsequent fiscal years

(b)(1) Amounts credited to the fund shall be expended, without further appropriation, for a competitive grant program administered by the office of travel and tourism for major sports or entertainment events to provide: (i) event services; (ii) sports development; (iii) sports marketing; or (iv) construction, functioning or operation of a sports or entertainment event; provided, that in evaluating grant applications, priority shall be given to applicants based upon expected return-on-investment and that clearly identify direct and indirect economic impacts on the tourism industry in the commonwealth and help promote the commonwealth in national and international media; and provided further, that no grant award shall provide more than half of the balance of the fund to any 1 recipient in any calendar year.

(2) Grants under this section shall be awarded in a manner that promotes geographic equity.

(c)(1) Any grant awarded pursuant to clause (i) or (iv) of paragraph (1) of subsection (b) shall require an applicant to provide complete and accurate responses and disclosures for itself and for any contractors or vendors to be utilized for the sports or entertainment event which shall include:

(i) certification that the applicant and any contractors or vendors it utilizes have complied with chapters 149, 151, 151A, 151B and 152 and 29 U.S.C. 201, et seq. and federal anti-discrimination laws for the last 3 calendar years;

(ii) certification that the applicant and any contractors or vendors it utilizes are currently, and shall remain, in compliance with chapters 149, 151, 151A, 151B and 152 and 29 U.S.C. 201, et seq. and federal anti-discrimination laws for the duration of the services or labor;

(iii) a disclosure by the applicant as to whether it and any contractors and vendors it utilizes to support sports or entertainment events have previously contracted with a labor organization, as defined by chapter 150A and section 2 of the National Labor Relations Act, in the commonwealth or elsewhere; and

(iv) a disclosure by the applicant of its plans for assuring labor harmony for the duration of work to support sports or entertainment events both separately and in conjunction with its contractors and vendors.

(2) Any grant awarded pursuant to clause (i) or (iv) of paragraph (1) of subsection (b) for any construction on publicly owned or leased property to support a sports or entertainment event shall require an applicant to provide complete and accurate responses and disclosures for itself and any contractors or sub-contractors to be utilized for the sports or entertainment event which shall include:

(i) certification that the applicant and any contractors and sub-contractors are in compliance with the commonwealth's public procurement and bidding statutes, pursuant to chapters 30, 149 and 149A;

(ii) disclosures in which the applicant shall specify whether it and any contractors and subcontractors on the project participates in a state or federally certified apprenticeship program and the number of apprentices the apprenticeship program has trained to completion for each of the last 5 calendar years;

(iii) a requirement that the applicant provide a statement of intent concerning the extent to which the applicant and any contractors and sub-contractors on the project intend to utilize apprentices on the project if a grant is awarded; and

(iv) certification that the applicant and any contractors or sub-contractors have not been debarred by the federal government or the commonwealth.

(3) Any grant awarded pursuant to clauses (i) or (iv) of paragraph (1) of subsection (b) for the procurement of services, labor, equipment or supplies pursuant to chapter 30B on publicly owned or leased property to support a sports or entertainment event shall require an applicant to provide complete and accurate responses and disclosures for the applicant and any vendors to be utilized for the sports or entertainment event which shall include:

(i) certification that the applicant and each of its vendors are in compliance with chapter 30B;

(ii) disclosures in which the applicant shall specify whether it and each of its vendors on the project has established or participates in workforce development programs within the commonwealth and the number of residents of the commonwealth the workforce development programs have trained to completion for each of the last 5 years; and

(iii) a statement of intent concerning the extent to which the applicant and its vendors intend to utilize workers in the commonwealth to fulfill services and labor requirements.

(4)(A) All applicants shall timely provide the documentation, certifications and disclosures pursuant to paragraphs (1), (2) and (3) as part of their initial application. Failure to provide the documentation, certifications and disclosures shall disqualify the applicant from receiving grant funding.

(B) A successful applicant's good faith failure to provide complete and accurate documentation, certifications and disclosures pursuant to paragraphs (1), (2) and (3) shall result

in suspension from the project for a period of 30 days; provided, that during said 30 days the office of travel and tourism shall provide an opportunity for the applicant to address application deficiencies to the satisfaction of the office of travel and tourism.

(C) Failure to cure deficiencies shall result in termination.

(D) A successful applicant's willful failure to provide accurate documentation, certification and disclosures pursuant to paragraphs (1), (2) and (3) shall result in permanent termination of grant funding and shall trigger the return of all funds awarded within 30 days.

(5) The attorney general shall enforce this subsection for any project awarded a grant pursuant to this section.

(d) Annually, not later than January 1, the office of travel and tourism shall submit a report to the house and senate committees on ways and means and the joint committee on tourism, arts and cultural development providing: (i) the number of grant awards; (ii) the geographic location of the grant award; (iii) the dollar amount of the grant awards; (iv) data pertaining to return-on-investment; and (v) information and analysis pertaining to the impacts on the economy in the region receiving the grant award and the commonwealth overall.

SECTION 12. Section 3 of chapter 23I of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in line 42, the word "Six" and inserting in place thereof the following word:- Five.

SECTION 13. Section 2HHHH of chapter 29 of the General Laws, as so appearing, is hereby amended by inserting after the figure "71", in lines 6 and 15, each time it appears, the following words:- , section 74E of chapter 112, section 18 of chapter 112A.

SECTION 14. Section 2YYYYY of said chapter 29, as so appearing, is hereby amended by striking out the second paragraph and inserting in place thereof the following paragraph:-

The secretary may expend, without further appropriation: (i) not more than \$160,000,000 per fiscal year from the fund to expand and support the residential treatment system to treat individuals with a substance use disorder or co-occurring mental health and substance use disorder and to expand and increase access to the 24-hour diversionary system; (ii) not more than \$135,000,000 per fiscal year from the fund to reduce stigma, expand access, support implementation and increase competencies for medications for substance use disorder; (iii) not more than \$35,000,000 per fiscal year from the fund to support access to evidence-based recovery services through peer and paraprofessional services; and (iv) not more than \$85,000,000 per fiscal year from the fund to ensure appropriate assessment for levels of care utilizing American Society of Addiction Medicine or other evidence-based modalities and to support integration of physical health, mental health and substance use disorder care across all provider settings. To accommodate timing discrepancies between the receipt of revenues and related expenditures, the fund may incur expenses, and the comptroller shall certify for payment, amounts not to exceed the most recent revenue estimate as certified by the MassHealth director, as reported in the state accounting system. Amounts credited to the fund shall not be subject to further appropriation and money remaining in the fund at the end of a fiscal year shall not revert to the General Fund and shall be available for expenditure in the subsequent fiscal year.

SECTION 15. Section 2FFFFFFF of said chapter 29, inserted by section 58 of chapter 140 of the acts of 2024, is hereby amended by striking out subsection (c) and inserting in place thereof the following subsection:-

(c) The secretary shall annually expend money in the fund, including all amounts credited to the fund, for payments to Medicaid managed care organizations, as such term is defined in section 64 of chapter 118E; provided, that such amounts expended annually shall be not less than the Medicaid managed care organization revenue amount, as such term is defined in said section 64; and provided further, that such expenditures shall be consistent with all approved federal waivers and state plan provisions.

SECTION 16. Chapter 31 of the General Laws is hereby amended by adding the following section:-

Section 79. Following their original appointment and oath as a permanent full-time environmental police officer in the police force of the office of law enforcement established by section 10A of chapter 21A, a person shall perform the duties of such position on a full-time basis for a probationary period of 12 months before they shall be considered a full-time tenured employee in such position. The administrator, with the approval of the commission, may establish procedures to ensure the evaluation by appointing authorities, prior to the end of such probationary period, of the performance of persons appointed as police officers in such force. Unless otherwise provided by civil service rule, and with appropriate adjustments to the timing of performance evaluations called for therein, the second paragraph of section 34 shall apply to persons covered by this section.

SECTION 17. Paragraph (a) of subdivision (2) of section 26 of chapter 32 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by adding the following sentence:- This subdivision shall not apply to a member in service who is physically not able to perform the essential duties of the member's job by reason of violent act injury.

SECTION 18. Said section 26 of said chapter 32, as so appearing, is hereby further amended by inserting after subdivision (2) the following subdivision:-

(2½) Section 7 shall apply to any member in service classified in Group 3 who is an officer of the department of state police if the rating board, after an examination of such officer by a registered physician appointed by it, reports in writing to the state board of retirement that such officer is physically incapacitated for the performance of duty by reason of violent act injury occurring during the performance and within the scope of the officer's duty and without contributory negligence on the officer's part, and that such incapacity is likely to be permanent.

SECTION 19. Section 1 of chapter 75 of the General Laws, as so appearing, is hereby amended by striking out, in line 14, the figure "58" and inserting in place thereof the following figure:- 57.

SECTION 20. Subsection (a) of section 24N of chapter 111 of the General Laws, as so appearing, is hereby amended by striking out the definition of "Routine childhood immunizations" and inserting in place thereof the following definition:-

"Routine childhood immunizations", immunizations for children until their nineteenth birthday as determined by the commissioner.

SECTION 21. Subsection (c) of said section 24N of said chapter 111, as so appearing, is hereby amended by striking out the last 5 sentences and inserting in place thereof the following 6 sentences:-

The council shall recommend the list of routine childhood immunizations, including types of vaccines to be purchased and shall take into account provider preference, cost,

388 availability and other factors as determined by the council. The commissioner shall recommend
389 the amount of funding needed each fiscal year by calculating the total non-federal program cost.
390 The council shall make recommendations to the commissioner on whether the commissioner
391 may authorize provider choice of more than 1 comparable brand or type for a routine childhood
392 immunization vaccine. In its recommendations, the council shall examine the feasibility, costs
393 and benefits of authorizing provider choice, provide a schedule of the cost of each comparable
394 brand or type of a vaccine recommended for provider choice and demonstrate that the estimated
395 vaccine cost of authorizing provider choice would not be substantially greater than the estimated
396 vaccine cost of purchasing a single brand or type of a vaccine. The commissioner of public
397 health shall determine the final list of routine childhood immunizations and vaccines to be
398 purchased. The council shall also consider other vaccine-related questions presented by the
399 commissioner.

400 SECTION 22. Said section 24N of said chapter 111, as so appearing, is hereby further
401 amended by striking out, in lines 109 to 111, inclusive, the words “Advisory Committee on
402 Immunization Practices of the Centers for Disease Control and Prevention” and inserting in place
403 thereof the following word:- commissioner.

404 SECTION 23. Chapter 112 of the General Laws is hereby amended by inserting after
405 section 74D the following section:-

406 Section 74E. (a) The board of registration in nursing may obtain a state and national
407 fingerprint-based criminal background check, as authorized by Public Law 92-544, to determine
408 the suitability of an applicant for a license to practice nursing pursuant to sections 74, 74A, 76

409 and 80B, including, but not limited to, registered nurses, licensed practical nurses and advanced
410 practice registered nurses.

411 (b) Registered nurses subject to background checks pursuant to this section shall be
412 individuals who hold ultimate responsibility for direct and indirect nursing care and are seeking:
413 (i) licensure as a registered nurse pursuant to this chapter; and (ii) to provide nursing care, health
414 maintenance, teaching, counseling, planning and restoration for optimal functioning and comfort
415 of patients they serve within the commonwealth. For the purposes of this section, “advanced
416 practice registered nurse” shall mean a registered nurse authorized by the board of registration in
417 nursing to perform an expanded scope of practice when caring for patients in the commonwealth
418 consistent with section 80B.

419 (c) Licensed practical nurses subject to background checks pursuant to this section shall
420 be individuals who are seeking: (i) licensure as a practical nurse pursuant to this chapter; and (ii)
421 to provide nursing care and health maintenance services to patients within the commonwealth.

422 (d) An individual applying to the board of registration in nursing for a license to practice
423 nursing shall submit a full set of fingerprints to the identification section of the department of
424 state police to obtain a state and national fingerprint-based criminal background check, as
425 authorized by Public Law 92-544, to determine the suitability of any applicant for licensure.

426 (e) Fingerprints shall be submitted to the state identification section of the department of
427 state police for a state criminal history check and forwarded to the Federal Bureau of
428 Investigation for a national criminal history check in accordance with the policies and procedures
429 established by the state identification section and by the department of criminal justice
430 information services. Fingerprint submissions may be retained by the Federal Bureau of

Investigation, the state identification section of the department of state police, and the department of criminal justice information services to assist the board of registration in nursing to ensure the continued suitability of these licensees and persons subject to criminal background checks under this section. The department of criminal justice information services may disseminate the results of the state and national criminal background checks to authorized staff employed by the department of public health and board of registration in nursing.

(f) Each applicant shall pay a fee to be established by the secretary of administration and finance, in consultation with the secretary of public safety, to offset the costs of operating and administering a fingerprint-based criminal background check system. The secretary of administration and finance, in consultation with the secretary of public safety, may increase the fee accordingly if the Federal Bureau of Investigation increases its fingerprint background check service fee. Any fees collected from fingerprinting activity under this section shall be deposited into the Fingerprint-Based Background Check Trust Fund established in section 2HHHH of chapter 29.

(g) The board of registration in nursing may use the results of the criminal history record check for the sole purpose of determining the applicant's eligibility for a license to practice nursing. The department of public health and board of registration in nursing shall not disseminate the criminal history record check information to any other entity.

(h) The department of public health and board of registration in nursing may receive all available criminal offender record information, juvenile adjudications and delinquency matters, sealed records and the results of checks of state and national criminal history information databases under Public Law 92-544. Upon receipt of the results of the state and national criminal

background checks, the department of public health, board of registration in nursing and authorized staff shall treat the information according to sections 167 to 178, inclusive, of chapter 6 and the regulations thereunder regarding criminal offender record information.

(i) The board of registration in nursing may promulgate regulations necessary to carry out this section.

SECTION 24. Section 64 of chapter 118E of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out the definition of “Managed care organization reinvestment revenue amount” and inserting in place thereof the following 3 definitions:-

“Managed care organization services assessment rate”, the rate calculated annually by dividing the non-Medicaid managed care organization revenue amount by the total managed care organization services subject to assessment that are not Medicaid managed care organization services subject to assessment.

“Medicaid managed care organization revenue amount”, an amount calculated annually by multiplying the Medicaid managed care organization services subject to assessment by the managed care organization services assessment rate.

“Non-Medicaid managed care organization revenue amount”, an amount equal, for each calendar year, to the sum of the following in the same year less \$20,000,000: (i) the health safety net managed care organization revenue amount; (ii) the Massachusetts Child Psychiatry Access Project revenue amount; (iii) the immunization revenue amount; (iv) the health policy commission revenue amount; (v) the center for health information and analysis revenue amount; (vi) the amount transferred, pursuant to section 66, to the Behavioral Health Access and Crisis Intervention Trust Fund established in section 2WWWW of chapter 29; and (vii) the amounts

475 necessary to incorporate prospectively all adjustments or reconciliations to account for under-
476 assessments in the prior year.

477 SECTION 25. Said section 64 of said chapter 118E, as so appearing, is hereby further
478 amended by striking out the definition of “Total managed care organization services assessment
479 amount” and inserting in place thereof the following definition:-

480 “Total managed care organization services revenue amount”, an amount equal, for each
481 calendar year, to the sum of the following in the same year: (i) the Medicaid managed care
482 organization revenue amount; and (ii) the non-Medicaid managed care organization revenue
483 amount.

484 SECTION 26. Section 66 of said chapter 118E, as so appearing, is hereby amended by
485 striking out, in lines 55 and 56, the words “managed care organization reinvestment” and
486 inserting in place thereof the following words:- Medicaid managed care organization.

487 SECTION 27. Said section 66 of said chapter 118E, as so appearing, is hereby further
488 amended by striking out, in lines 85 and 86, the words “total managed care organization services
489 assessment” and inserting in place thereof the following words:- non-Medicaid managed care
490 organization revenue.

491 SECTION 28. Section 74 of said chapter 118E, as so appearing, is hereby amended by
492 striking out subsection (k) and inserting in place thereof the following 2 subsections:-

493 (k) The council may contract with a provider of a pooled employer plan, as defined in 29
494 U.S.C. § 1002(43), on behalf of consumers and their personal care attendants.

495 (l) The council may perform other acts necessary or convenient to execute the powers
496 expressly granted to it.

497 SECTION 29. Section 25E of chapter 138 of the General Laws, as so appearing, is
498 hereby amended by adding the following paragraph:-

499 For the purposes of this section, the term “successor supplier” shall mean any person or
500 entity who directly or indirectly acquires the right or obligation to sell an item with a brand name
501 to a wholesaler licensed in the commonwealth. A successor supplier shall acquire such rights or
502 obligations subject to this section. All sales of a brand name item made to a licensed wholesaler
503 prior to succession shall be attributed to the successor supplier for the purposes of determining
504 whether 6 months of regular sales exist pursuant to this section.

505 SECTION 30. Section 44H of chapter 149 of the General Laws, as so appearing, is
506 hereby amended by striking out, in lines 6 and 7, the words “38C to 38N, inclusive, of chapter 7”
507 and inserting in place thereof the following words:- 44 to 57, inclusive, of chapter 7C.

508 SECTION 31. Said section 44H of said chapter 149, as so appearing, is hereby further
509 amended by striking out, in line 14, the words “38C to 38N, inclusive” and inserting in place
510 thereof the following words:- 44 to 57, inclusive, of chapter 7C.

511 SECTION 32. Section 7 of chapter 161A of the General Laws, as so appearing, is hereby
512 amended by striking out, in line 34, the figure “4” and inserting in place thereof the following
513 figure:- 5.

514 SECTION 33. Said section 7 of said chapter 161A, as so appearing, is hereby further
515 amended by striking out subsection (f) and inserting in place thereof the following subsection:-

(f) The board shall establish subcommittees, which shall include at a minimum a subcommittee on: (i) safety, health and environment; (ii) planning, workforce development and compensation; and (iii) audit and finance. Each member shall participate on not more than 2 subcommittees of the board. Each subcommittee shall have not less than 3 board members. The appointee of the governor who has experience in safety shall chair the subcommittee on safety, health and environment. The appointee of the governor who has experience in public or private finance shall chair the subcommittee on audit and finance. In the case of a vacancy of either the appointee who has experience in safety or the appointee who has experience in public or private finance, the board chair shall designate a subcommittee member to serve as acting subcommittee chair until such time as the vacancy has been filled.

SECTION 34. Said section 7 of said chapter 161A, as so appearing, is hereby further amended by striking out subsection (i) and inserting in place thereof the following subsection:-

(i) The board shall meet as determined by the chair, but not less than 10 times per calendar year.

SECTION 35. Section 2 of chapter 176Q of the General Laws, as so appearing, is hereby amended by striking out, in lines 24 and 25, the words “Massachusetts chapter of the National Association of Health Underwriters” and inserting in place thereof the following words:-
National Association of Benefits and Insurance Professionals – Massachusetts Chapter, Inc.

SECTION 36. The first paragraph of section 12A of chapter 494 of the acts of 1978 is hereby amended by striking out the words “and until December 15, 2025”, inserted by section 7 of chapter 26 of the acts of 2023, and inserting in place thereof the following words:- and until December 15, 2027.

538 SECTION 37. The last paragraph of said section 12A of said chapter 494 is hereby
539 amended by striking out the words “December 15, 2025”, inserted by section 8 of said chapter
540 26, and inserting in place thereof the following words:- December 15, 2027.

541 SECTION 38. The introductory paragraph of section 13 of said chapter 494 is hereby
542 amended by striking out the words “and until December 15, 2025”, inserted by section 9 of said
543 chapter 26, and inserting in place thereof the following words:- and until December 15, 2027.

544 SECTION 39. Section 15 of said chapter 494 is hereby amended by striking out the
545 words “and until December 15, 2025”, inserted by section 10 of said chapter 26, and inserting in
546 place thereof the following words:- and until December 15, 2027.

547 SECTION 40. The first paragraph of section 9 of chapter 277 of the acts of 1986 is
548 hereby amended by striking out the words “and until December 15, 2025”, inserted by section 11
549 of said chapter 26, and inserting in place thereof the following words:- and until December 15,
550 2027.

551 SECTION 41. The first sentence of the first paragraph of section 3 of chapter 114 of the
552 acts of 1991 is hereby amended by striking out the words “and until December 15, 2025”,
553 inserted by section 12 of said chapter 26, and inserting in place thereof the following words:- and
554 until December 15, 2027.

555 SECTION 42. The last paragraph of said section 3 of said chapter 114 is hereby amended
556 by striking out the words “December 15, 2025”, inserted by section 13 of said chapter 26, and
557 inserting in place thereof the following words:- December 15, 2027.

SECTION 43. The first paragraph of section 4 of said chapter 114 is hereby amended by striking out the words “and until December 15, 2025”, inserted by section 14 of said chapter 26, and inserting in place thereof the following words:- and until December 15, 2027.

SECTION 44. The last paragraph of said section 4 of said chapter 114 is hereby amended by striking out the words “December 15, 2025”, inserted by section 15 of said chapter 26, and inserting in place thereof the following words:- December 15, 2027.

SECTION 45. The first paragraph of section 5 of said chapter 114 is hereby amended by striking out the words “and until December 15, 2025”, inserted by section 16 of said chapter 26, and inserting in place thereof the following words:- and until December 15, 2027.

SECTION 46. Chapter 301 of the acts of 1998, as most recently amended by chapter 291 of the acts of 2014, is hereby further amended by striking out sections 1 to 36, inclusive, and inserting in place thereof the following 36 sections:-

Section 1. It is hereby found that the closure of the Naval Air Station hereinafter referred to as NAS South Weymouth, by the United States Government in September of 1997 is detrimental to the economic welfare of the citizens of the commonwealth and, in particular, the towns of Abington and Rockland and the city known as the town of Weymouth. The closure of this military installation imposes upon the commonwealth and its citizens an increased fiscal burden in addition to that incurred by the commonwealth on account of the closure of various other military installations in the commonwealth. It is further found that the full redevelopment of NAS South Weymouth remains essential for the benefit of the towns of Abington, Rockland and Weymouth, the region and the commonwealth and, to that end, chapter 291 of the acts of 2014 reconstituted the South Shore Tri-Town Development Corporation, or SSTDC, as the

Southfield Redevelopment Authority, and this act shall reinforce applicable control over land use and development decisions affecting Abington, Rockland and Weymouth that constitute NAS South Weymouth and strengthen the alignment of interests between the authority, the towns and the master developer as defined herein. Therefore, it is the purpose of this act to promote the expeditious and orderly conversion and redevelopment of NAS South Weymouth for nonmilitary purposes including, but not limited to, commercial, housing, industrial, institutional, educational, governmental, recreational, conservation or manufacturing uses in order to prevent blight, economic dislocation and additional unemployment and to aid and strengthen the local economy, the regional economy and the economy of the commonwealth. In order to achieve these objectives, it is deemed necessary and appropriate to continue the structure of SSTDC, as renamed and reconstituted pursuant to chapter 291 of the acts of 2014, with full powers and authority to carry out this act.

Section 2. It shall be the goal of this act to promote the expeditious acquisition and redevelopment of NAS South Weymouth while addressing the economic, social and environmental needs of the region. Except as otherwise provided in this act, this goal shall be accomplished in a manner consistent with the zoning by-laws. The redevelopment is designed to minimize and mitigate negative off-base impacts on the area such as those on water resources, air quality, traffic and noise, and to limit the impacts to those necessary to achieve community reuse goals and objectives. The redevelopment shall be integrated with the United States government's cleanup of hazardous materials on the base to ensure effective, expeditious and efficient environmental remediation and protection of public health and welfare in accordance with federal and state law and regulation.

Section 3. There was created by chapter 291 of the acts of 2014 a body politic and corporate, to be known as the Southfield Redevelopment Authority, to carry out this act. The authority is deemed to be a public instrumentality and the exercise by the authority of the powers conferred by this act shall be deemed and held to be the performance of public functions. The authority shall be included within the definition of a “local government unit or local governmental unit”, as defined in section 1 of chapter 29C of the General Laws, and its bonds and notes shall be included within the definition of “local governmental obligations”, as defined in said section 1 of said chapter 29C. The authority shall be included within the definition of a “governmental entity” for purposes of owning public infrastructure improvements pursuant to chapter 293 of the acts of 2006. The authority shall be an “eligible applicant” and a municipality for the purposes of the General Laws and the authority, the town of Rockland, the town of Weymouth and the town of Abington shall be eligible for any financial or other assistance from the Massachusetts School Building Authority and the Massachusetts Department of Transportation pursuant to chapter 90 of the General Laws.

To achieve its primary purpose of securing the redevelopment of NAS South Weymouth for the benefit of the towns of Abington, Rockland and Weymouth, the authority shall be guided in its financing activities with the goal of generating fiscal benefit to the towns stemming from the redevelopment. The authority, during its existence, and the master developer, giving consideration to its economic interests, shall pursue the redevelopment of the underutilized land within NAS South Weymouth in a manner that, in the aggregate, generates revenue for the towns that exceeds the costs that the towns incur for the provision of those municipal services that the towns are obligated to provide to NAS South Weymouth pursuant to this act. The authority shall, to the maximum extent feasible and consistent with the zoning by-laws, dispose of all of the

property within the NAS South Weymouth redevelopment area through sale or other transfer prior to the authority's termination as provided in section 33.

Section 4. As used in this act, the following words shall, unless the context clearly requires otherwise, have the following meanings:

“Abington appointee”, the member of the board appointed by the town of Abington.

“Advisory board”, the advisory board to the authority established in section 11.

“Affordable and workforce housing plan”, the Affordable and Workforce Housing Plan for NAS South Weymouth, as adopted by South Shore Tri-Town Development Corporation on January 24, 2011, and as may be amended.

“Affordable and workforce housing regulations”, the NAS South Weymouth Affordable and Workforce Housing Regulations, as adopted by South Shore Tri-Town Development Corporation on January 24, 2011, and as may be amended.

“Agency”, the Massachusetts Development Finance Agency, a Massachusetts body politic and corporate established in section 2 of chapter 23G of the General Laws, which is the successor-in-interest to the government land bank under chapter 289 of the acts of 1998.

“Authority”, the authority established in section 3 and, as the context requires, the South Shore Tri-Town Development Corporation created pursuant to chapter 301 of the acts of 1998.

“Base rate”, the ad valorem property tax rate levied by the town in which the subject property is located.

“Base revenue”, revenue generated through assessment and collection of the base rate.

645 “Board”, the board of directors of the Southfield Redevelopment Authority established in
646 section 9.

647 “Bond termination date”, the latest date on which all amounts outstanding under bonds or
648 notes issued by the authority pursuant to this act or by the agency pursuant to section 6 of chapter
649 293 of the acts of 2006, including all obligations of the authority undertaken in connection with
650 the issuance of such bonds of the agency, have been paid in full, which date shall be no later than
651 December 31, 2075.

652 “Chamber appointee”, the member of the board appointed pursuant to clause (vi) of
653 subsection (a) of section 9.

654 “Commercial development”, all nonresidential, nonrecreational and noninstitutional land
655 uses permissible under the zoning by-laws, including retail, general office, medical office and
656 industrial uses.

657 “DDA”, the then-current disposition and development agreement entered into between
658 the authority and the master developer, as defined herein, as the same may be re-negotiated, re-
659 stated or amended.

660 “Dissolution and administration agreement”, the dissolution and administration
661 agreement authorized pursuant to section 33.

662 “ENA”, the then-current exclusive negotiation agreement entered into between the
663 authority and the master developer, as defined herein, as the same may be re-negotiated, re-stated
664 or amended.

665 “Executive”, the mayor of Weymouth or the boards of selectmen of the towns of
666 Abington and Rockland, as applicable.

667 “Infrastructure”, all infrastructure included in the project.

668 “Labor appointee”, the member of the board appointed pursuant to clause (iv) of
669 subsection (a) of section 9.

670 “Major zoning revision”, a “substantial revision” to the zoning by-laws as that term is
671 defined and used in the zoning by-laws.

672 “Master developer”, the master developer as designated pursuant to the most current
673 ENA and finalized under a DDA.

674 “Minor zoning revision”, any revision to the zoning by-laws that does not constitute a
675 major zoning revision as defined herein.

676 “NAS South Weymouth”, the military base formerly known as the Naval Air Station
677 South Weymouth, which was disestablished in accordance with the recommendation of the 1995
678 Base Realignment and Closure Commission, pursuant to 10 U.S.C. § 2687, as amended.

679 “NAS South Weymouth redevelopment area”, the geographic area delineated in the plans
680 and maps referenced in section 5.

681 “NAS South Weymouth region”, (i) towns as defined in this act; and (ii) municipalities
682 contiguous to the towns; and (iii) all municipalities contiguous to the municipalities in subsection
683 (ii); provided, however, that the NAS South Weymouth region shall not include the city of
684 Boston.

“New regulations”, the regulations applicable to all projects at the NAS South Weymouth redevelopment area for which construction commences after the effective date of this act, which are adopted pursuant to subsection (i) of section 14.

“Parkway”, the east-west parkway connecting Weymouth street in the town of Rockland to state highway route 18, Main street, in the town of Weymouth.

“Parkway financing MOA”, the Memorandum of Agreement on Financing for the South Shore Tri-Town Development Corporation’s Parkway entered into as of March 4, 2010 by and between the commonwealth and South Shore Tri-Town Development Corporation, as amended by the First Amendment thereto dated June 15, 2010, and as may be further amended.

“Permanent water and wastewater infrastructure”, (i) water supply, treatment and distribution; and (ii) sewer collection, treatment and disposal capacity for the project that does not exist as of the effective date of this act and that may be financed, designed, constructed, operated and maintained by the master developer pursuant to, and to the extent provided in, section 15.

“Pledged revenue”, property tax revenue subject to the pledge established in that certain Amended and Restated Trust Indenture dated as of December 1, 2020 between Southfield Redevelopment Authority and Wells Fargo Bank, N.A., as Trustee, and relating to Southfield Redevelopment Authority Revenue Refunding Bonds, Series 2020A, as the same may be amended from time to time.

“Prior enabling act”, chapter 291 of the acts of 2014.

“Project”, the acquisition, development, improvement, construction, expansion, reduction, destruction and renovation of all real and personal property and infrastructure, buildings, structures, utilities and utility services located on, conducted within or otherwise directly associated with the NAS South Weymouth redevelopment area for all uses that may now or in the future be contemplated or allowed pursuant to the zoning by-laws, which shall be owned by the authority, the towns, the commonwealth or any other political subdivision or public instrumentality of the commonwealth including, but not limited to, all infrastructure for the provision of gas; cable television; telephone; storm drainage systems; dams; sewage treatment plants; sewers; water and well systems; roads; highways; bridges; culverts; tunnels; streets; sidewalks; lighting; parking, including garages; schools; public safety; public works and administration buildings; parks; cultural and performing arts facilities; recreational facilities; transportation stations and related facilities; shuttle transportation equipment; fiber and telecommunication systems; facilities to produce and distribute electricity, including alternate energy sources such as co-generation and solar installations; the investigation and remediation associated with the cleanup of actual or perceived environmental contamination in accordance with applicable governmental regulations; and all other programs, services, systems and other activities associated therewith, located on, conducted within or otherwise directly associated with the NAS South Weymouth redevelopment area.

“Resident appointees”, the members of the board appointed pursuant to clause (v) of subsection (a) of section 9.

“Rockland appointees”, the members of the board appointed by the town of Rockland.

“Secretary”, the secretary of administration and finance.

727 “Series 2020A bonds”, the Southfield Redevelopment Authority Revenue Refunding
728 Bonds, Series 2020A issued pursuant to the Amended and Restated Trust Indenture dated as of
729 December 1, 2020 between Southfield Redevelopment Authority and Wells Fargo Bank, N.A.,
730 as Trustee.

731 “Southfield rate”, ad valorem property tax rate levied within NAS South Weymouth
732 pursuant to section 19, in excess of the base rate and at only that level necessary to fund the
733 operations of the authority as determined by the board pursuant to said section 19, subject to the
734 approval of the department of revenue.

735 “Southfield revenue”, revenue generated in a single tax year through the assessment and
736 collection of the Southfield rate.

737 “Taxation plan”, the plan established pursuant to section 19.

738 “Town appointees”, the Abington, Rockland and Weymouth appointees, collectively.

739 “Towns”, the towns of Abington and Rockland and the city known as the town of
740 Weymouth.

741 “Trust Indenture”, the trust indenture referred to in the definition of “pledged revenue”.

742 “Weymouth appointees”, the members of the board appointed by the town of Weymouth.

743 “Zoning by-laws”, the “zoning and land use by-laws for NAS South Weymouth,” in the
744 form approved by: (i) unanimous vote of the Weymouth Town Council on June 26, 2023; (ii) a
745 two-thirds majority vote at Abington Special Town Meeting on October 14, 2023 and: (iii) a
746 two-thirds majority vote at Rockland Special Town Meeting on November 7, 2023, and as they
747 may be amended.

“Zoning map”, the zoning district map referenced in section 4.3 of the zoning by-laws, in the form approved by: (i) unanimous vote of the Weymouth Town Council on June 26, 2023; (ii) a two-thirds majority vote at Abington Special Town Meeting on October 14, 2023 and; (iii) a two-thirds majority vote at Rockland Special Town Meeting on November 7, 2023, and as they may be amended.

Section 5. The NAS South Weymouth redevelopment area shall be comprised of the lands, including all easements, reservations and rights appurtenant thereto, and all buildings, structures, utilities and improvements located thereon, comprised of the former military base of that name presently located in the towns of Abington, Rockland and Weymouth and now or formerly within the ownership, control and jurisdiction of the United States, including, without limitation, those portions of the base property that have been transferred as of the effective date of this act to the United States Coast Guard, Federal Aviation Administration or the authority. Plans and descriptions detailing the precise boundaries and configuration of the NAS South Weymouth redevelopment area were filed with the secretary and recorded in the Plymouth registry of deeds as plan number 760 in plan book 42 and the Norfolk registry of deeds as plan number 525 in plan book 467.

Section 6. Except as otherwise provided in, directed by or limited by this act, the authority shall have all of the powers necessary or convenient to carry out the purposes and provisions of this act, including the power to:

(a) exercise the rights provided to municipal governments and agencies under federal laws and regulations and under the constitution, laws and regulations of the commonwealth subject to section 31 of chapter 44 of the General Laws;

(b) sue and be sued in all courts and to initiate or participate in actions and proceedings, whether judicial, administrative, arbitratve or otherwise;

(c) adopt a seal and alter such seal at its pleasure and use it by causing it or a facsimile to be affixed or impressed or reproduced in any manner;

(d) own, acquire, manage, maintain, modify, operate, convey or lease infrastructure improvements or any facilities for the project, including the infrastructure for the distribution of public utilities, including, but not limited to, electricity, gas, water, waste water and sewer and sewage treatment and disposal, refuse collection and disposal, telecommunications and cable services and the transportation infrastructure, including, but not limited to, the parkway;

(e) develop, own, manage, operate, regulate or lease wells to procure water from productive aquifers underlying the NAS South Weymouth redevelopment area in accordance with sections 38 and 39A of chapter 40 of the General Laws and determine and collect or authorize the collection on its behalf of assessments and other charges related to constructing and maintaining such systems, as provided in said chapter 40; provided, however, that the procurement of such water shall not materially adversely affect the supply of water available to a town;

(f) own, manage, operate, regulate, convey or lease facilities of common sewers and main drains and facilities for wastewater and sewage treatment and disposal and determine and collect or authorize the collection on its behalf, or on behalf of the master developer, of assessments and other charges related to financing, laying out, constructing, operating and maintaining such systems, as provided in this act and pursuant to chapter 83 of the General Laws;

791 (g) own, manage, operate, regulate or lease surface water reservoirs within the NAS
792 South Weymouth redevelopment area or connect to or otherwise purchase or lease water from
793 the water system of a town, any other municipality or any other governmental or quasi-
794 governmental agency or any other public or private entity, including, without limitation, the
795 Massachusetts water resource authority, for the provision of water within the NAS South
796 Weymouth region, and manage, operate, regulate, convey or lease any and all systems for the
797 delivery of such water within the NAS South Weymouth redevelopment area; provided,
798 however, that the procurement of such water shall not materially adversely affect the supply of
799 water available to any of the towns;

800 (h) exercise the power of eminent domain within the NAS South Weymouth
801 redevelopment area as provided in chapters 79, 79A, 80 and 80A of the General Laws;

802 (i) appoint, prescribe the qualifications and fix the compensation of employees and pay
803 the same out of funds of the authority;

804 (j) appoint legal counsel and fix compensation for such services rendered to the authority;

805 (k) appoint qualified boards, commissions, committees or subcommittees, including those
806 responsible for zoning, subdivision and other land use or permitting approvals whose members
807 need not be directors of the board, and individuals, in addition to the advisory board established
808 pursuant to section 11, to serve as unpaid advisors under such terms and conditions as it may
809 deem necessary; provided, however, that such boards, commissions, committees, subcommittees
810 and individuals may be reimbursed for incidental expenses determined by the authority to be
811 necessary and incurred while performing the business of the authority;

812 (l) acquire, hold and dispose of personal property within the NAS South Weymouth
813 redevelopment area for its corporate purposes;

814 (m) acquire easements and other interests in land directly associated with the NAS South
815 Weymouth redevelopment area in connection with the project;

816 (n) purchase, receive, take by grant, gift, devise, bequest, lease, or otherwise acquire,
817 own, hold, improve, employ, use or otherwise manage real and personal property or any interest
818 therein, whether tangible or intangible, for its purposes, located within the NAS South
819 Weymouth redevelopment area, except for any federally-owned property of the former NAS
820 South Weymouth which shall be or has been transferred to the United States Coast Guard and
821 Federal Aviation Administration; provided, however, that when any of the excepted property is
822 declared to be surplus to the needs of the United States government, the authority may obtain any
823 and all like interest in the property as described herein;

824 (o) sell, convey, lease, exchange, transfer or otherwise dispose of all or any of its real or
825 personal property or any interest therein, using procedures adopted by the authority;

826 (p) apply for and, for the purposes of this act, accept gifts, loans, grants of property,
827 funds, money, materials, labor, supplies or services from a person or from the United States
828 government or its departments or agencies or from an agency of the commonwealth or a political
829 subdivision thereof, or make agreements with respect to any such gifts, loans or grants, and to do
830 any and all things necessary, useful, desirable or convenient in connection with procuring,
831 accepting or disposing of such gifts, loans or grants;

832 (q) purchase, take, receive, subscribe for, or otherwise acquire, hold, make a tender offer
833 for, vote, employ, sell, lend, lease, exchange, transfer or otherwise dispose of, mortgage, pledge

834 or grant a security interest in, use or otherwise deal in and with, bonds and other obligations,
835 shares or other securities or interests therein issued by others, whether engaged in a similar or
836 different business or activity;

837 (r) make and execute agreements, contracts, project labor agreements and other
838 instruments necessary or convenient in the exercise of the powers and functions of the authority
839 under this act, including contracts with a person, firm, corporation, municipality, commonwealth
840 agency, governmental unit or other entity, foreign or domestic;

841 (s) assess and collect taxes, assessments, special assessments, betterments and fees within
842 the NAS South Weymouth redevelopment area under the General Laws and the powers granted
843 by this act, in order to generate revenues to pay the cost of operations of the authority, amounts
844 due on outstanding indebtedness of the authority, maintenance of the property, environmental
845 remediation and monitoring of the property and the maintenance of the project, infrastructure
846 improvements within or associated with the NAS South Weymouth redevelopment area in
847 accordance with this act, the General Laws, and zoning by-laws, including the funding
848 provisions thereof and for all other purposes for which cities and towns may assess and collect
849 such taxes, assessments, special assessments, betterments and fees, and distribute revenues in
850 accordance with section 19. In connection with the foregoing, the authority shall have all the
851 powers and authority of cities and towns under chapters 59, 60, 60A, 61B and section 3A of
852 chapter 64G of the General Laws, and any powers that require adoption by cities and towns if
853 adopted by the authority;

854 (t) administer land use, subdivision, zoning and wetland protection controls and
855 associated permitting, approval and entitlement activities within the NAS South Weymouth

856 redevelopment area, and to enter into agreements with the towns whereby any such activities
857 which the authority may determine shall be more effectively administered by a town shall be
858 within such town's administration, subject to such town's agreement to enter into such
859 agreement(s); provided, further, that any town's administration of such activities pursuant to any
860 such agreement(s) shall be consistent with any expedited permitting standards or requirements
861 then-applicable to the authority's conduct of such activities. Except as otherwise expressly
862 provided in the zoning by-laws: (i) in the administration of the activities authorized under this
863 section in the NAS South Weymouth redevelopment area, the authority may take action and
864 issue permits, approvals, orders of conditions, and other land-use entitlements in accordance with
865 the procedures and standards from time to time applicable to municipalities and their boards,
866 commissions and agencies so authorized to take such action or to issue any such permit, order of
867 conditions, approval or other entitlement under the General Laws; provided, however, that the
868 regulations developed and adopted by the authority under section 14 may provide for expedited
869 permitting under which the time frames for action applicable to municipalities and their boards,
870 commissions and agencies under the provisions of the General Laws are shortened; and (ii) all
871 such actions, including a failure to take action, and such permits, approvals, orders of conditions
872 or other land-use entitlements shall have the legal effect and duration as provided in the General
873 Laws, except for any shortened time frames expressly provided in such regulations. Upon
874 termination of the authority under section 33, the authority to administer such activities shall be
875 vested in the towns in accordance with the dissolution and administration agreement and the
876 General Laws, but no permit, approval, or other entitlement issued by the authority prior thereto
877 pursuant to this act or pursuant to the prior enabling act or any activity undertaken or
878 improvement made in accordance therewith shall be affected thereby. As further provided in

879 subsection (i) of section 14, administration of the following municipal powers pursuant to the
880 General Laws that do not involve the administration by the authority of such land use,
881 subdivision, zoning and wetland controls and related entitlement activities shall remain with the
882 towns in which the applicable real property is located unless expressly granted to said authority
883 in this act or elsewhere: issuance of building permits by the inspectional services department;
884 public-health and safety-related matters under the jurisdiction of the local board of health; and
885 issuance of liquor licenses. For the portions of the NAS South Weymouth redevelopment area
886 located within each of the towns, the respective town shall be responsible for providing all
887 services, including police and fire protection, normally and customarily provided by a
888 municipality within their jurisdiction. In the event that a town does not provide a service it is
889 required to provide in accordance with this subsection, the authority may provide such service
890 and charge the town for the cost of providing such a service. With respect to any utilities or
891 services provided as of the effective date of this act or to be provided in the future within the
892 NAS South Weymouth redevelopment area by the authority or the towns: (i) an intermunicipal
893 agreement shall not be required in any circumstance, even to the extent that the provision of such
894 utilities or services crosses town boundaries, and (ii) the authority or any of the towns shall be
895 permitted to provide utilities or services to land located outside of a particular town's boundaries
896 without entering into any additional agreement;

897 (u) develop, adopt, amend, implement and enforce by-laws and regulations for the
898 general administration of the NAS South Weymouth redevelopment area pursuant to sections 21
899 to 33, inclusive, of chapter 40 of the General Laws or as otherwise permitted by law, including
900 the new regulations;

901 (v) borrow money at such rate or rates of interest as the authority may determine; issue its
902 notes, bonds or other obligations to evidence such indebtedness, and secure any of its obligations
903 by pledging any of its assessments, betterment fees, rents, fees or other revenues or by mortgage
904 or pledge of all or any of its property, or any interest therein, tangible or intangible, whether then
905 owned or thereafter acquired, as provided in this act and exercise all other rights and powers of
906 cities and towns under chapter 44 of the General Laws; provided, however, that said chapter 44
907 shall not be applicable to the manner of voting or the limitations as to the amount and time of
908 payment or other details of debts incurred by the authority and, in the event of a conflict between
909 the provisions of this act and said chapter 44, the provisions of this act shall apply;

910 (w) arrange for guaranties of its notes, bonds or other obligations by the federal
911 government, the commonwealth, the towns or by any private insurer or otherwise, and to pay any
912 premiums therefor;

913 (x) issue such short and long term notes, bonds or other obligations, whether or not the
914 interest to the holders is exempt from taxation;

915 (y) purchase notes, bonds or other obligations of the authority at such price or prices, in
916 such manner, and upon such terms, as the authority may determine;

917 (z) invest and reinvest its funds in such investments as may be lawful for fiduciaries in
918 the commonwealth, and take and hold property as security for the payment of funds so invested,
919 as provided in section 55 of chapter 44 of the General Laws;

920 (aa) procure insurance against any loss in connection with its property or the project in
921 such amounts and from such insurers, including the federal government, and directors and

922 officers liability insurance, as it may deem necessary or desirable, and to pay any premiums
923 therefor;

924 (bb) enter into and perform contracts, project labor agreements, and other agreements,
925 whether or not they may be deemed to constitute indebtedness under applicable law, for the joint
926 or separate planning, financing, construction, purchase, operation, maintenance, use, sharing
927 costs of, ownership, mortgaging, leasing, sale, disposal of, or other participation in facilities,
928 products or services of any person who engages in business on property owned or controlled by
929 the authority;

930 (cc) maintain a principal office within the NAS South Weymouth redevelopment area;

931 (dd) make any inquiry, investigation, survey, feasibility study or other study which the
932 authority may deem necessary or advisable to enable it to carry out effectively this act;

933 (ee) apply to the appropriate agencies and officials of the federal government and the
934 commonwealth for licenses, permits or approvals, as are ordinarily applied for by cities and
935 towns, of its plans or the project as it may deem necessary or advisable, and to accept such
936 licenses, permits or approvals as may be tendered to it by such agencies or officials, upon such
937 terms and conditions as it may deem appropriate;

938 (ff) make by-laws and establish committees for the management and regulation of its
939 affairs as it may deem necessary or advisable and, subject to agreement with bondholders, make
940 rules pursuant to its own procedures for the use of the project and its property, and establish and
941 collect assessments, rentals, fees and all other charges for the use of the project under the
942 jurisdiction of the authority and for services or commodities sold, furnished or supplied by the
943 authority;

944 (gg) contract for the environmental remediation, construction, operation or maintenance
945 of any part of the project, or for services to be performed thereon, and rent parts thereof and
946 grant concessions thereon, on such terms and conditions as the authority may determine;
947 provided, however, that any such transaction shall be exempt from the public bidding and
948 procurement requirements applicable to bodies politic and corporate of the commonwealth
949 imposed by general or special law, including without limitation, the requirements of chapters 7,
950 30 and chapter 149 of the General Laws, but excluding sections 28 and 29 of said chapter 149,
951 and regulations promulgated thereunder so long as the authority has, pursuant to an affirmative
952 vote and by stating the public convenience and necessity therefor, exempted any such transaction
953 from such requirement;

954 (hh) designate the depositories of its money within the commonwealth;

955 (ii) establish its fiscal year to commence on July 1 and end on June 30 of each year and
956 change the fiscal year from time to time as the authority may deem necessary and appropriate;

957 (jj) take such other actions and exercise such other powers as it may deem necessary,
958 advisable and convenient in the furtherance of the purposes of this act;

959 (kk) apply for and be eligible for any and all available financial and other assistance
960 without further approval of any agency of the commonwealth or any other enabling authority
961 pursuant to any current or future economic development districts or special designations that are
962 intended to attract new growth, enhance infrastructure investment or incentives, or provide other
963 economic development benefit to priority areas of the commonwealth;

964 (ll) maintain, regulate, and otherwise own, manage and operate any street, public way or
965 public use of a private way within the NAS South Weymouth redevelopment area, including any

966 sewers, drains, sidewalks and other utilities and infrastructure located in any streets and ways,
967 until such time any such street, public way, or public use of a private way is transferred to a
968 town, the master developer, or other third party pursuant to this act or pursuant to land
969 disposition agreements entered into between the authority, the United States Navy, or the master
970 developer; and

971 (mm) assume responsibility for maintaining, monitoring and conducting other activities
972 imposed by any condition of any license, permit or approval, or by any institutional control
973 arising under any environmental law or regulation with respect to the project.

974 Section 7. The authority shall not be obligated to maintain, operate, improve or provide
975 services, including police and fire protection, for those portions of the NAS South Weymouth
976 which remain in federal ownership, nor shall the authority bear any responsibility or be liable for
977 any injury, damage or loss arising out of or in connection with any activities which may occur on
978 such federal property, nor as a result of any improvements, damage, deterioration or
979 environmental hazards occurring thereon.

980 Section 8. In addition to any other duties set forth in this act, the authority shall
981 coordinate with, and provide information to, the United States and any officials or employees
982 thereof, regarding any matter relating to the ownership, condition, closure, conversion,
983 redevelopment or future use or operations of the NAS South Weymouth redevelopment area as
984 required by the Defense Base Realignment and Closure Act. Notwithstanding any other
985 provision of law, the authority shall be the only person or entity in the commonwealth authorized
986 to negotiate, purchase or otherwise obtain on behalf of itself, the commonwealth or any of its
987 political subdivisions, any fee ownership, easement, lease, license or other interest in any

property in or on the NAS South Weymouth redevelopment area from the United States, except that a governmental entity of the commonwealth may acquire an interest from the authority to such property, if such acquisition and use of the property by a governmental entity of the commonwealth is consistent with the zoning by-laws.

Section 9. (a) The powers and management of the authority, which include all rights and powers of a town council or board of selectmen or mayor of a city or town except as otherwise provided in, directed by, or limited by this act, shall be vested in a board of 9 directors to be appointed as follows: (i) 1 member appointed by the board of selectmen of the town of Abington; (ii) 2 members appointed by the board of selectmen of the town of Rockland; (iii) 2 members appointed by the mayor of the town of Weymouth; (iv) 1 member, who is an experienced labor representative and selected by the president of the Norfolk County Labor Council; (v) 2 members, each of whom shall have legal residency at NAS South Weymouth, 1 of whom shall be appointed by the Southfield Neighborhood Association and 1 of whom shall be appointed jointly by the mayor of the town of Weymouth and board of selectmen of Rockland from 4 candidates nominated by the Southfield Neighborhood Association, provided, however, that if such mayor and board have not jointly appointed a candidate within 14 days of becoming eligible to make such appointment, the board of the authority shall appoint this member by an affirmative vote of at least 5 members from the 4 candidates nominated under this clause; and (vi) 1 member, who shall be a member of the board of the South Shore Chamber of Commerce, selected by said chamber. The board shall appoint a chairman from among its members who shall serve in that capacity at the pleasure of the board.

(b) The terms of all 9 members serving on the board, as constituted on the date hereof, shall expire 3 years following the date of appointment.

1011 Any town appointee may also be removed from the board by the executive of the town
1012 from which he or she was appointed for reasons deemed by such executive to be sufficient and
1013 proper. The resident appointee appointed by the Southfield Neighborhood Association may be
1014 removed from the board by the Southfield Neighborhood Association. The other resident
1015 appointee may be removed from the board by a vote of the executive authority of town of
1016 Weymouth and Rockland for reasons deemed to be sufficient and proper; provided, however,
1017 that if the appointee is appointed by the board of the authority, the appointee may only be
1018 removed by a majority vote of the board of the authority.

1019 The labor representative or chamber representative may be removed by a vote of the
1020 executive authority of at least 2 of the towns. All board members shall be eligible for
1021 reappointment to additional terms at the expiration of their current terms. Vacancies shall be
1022 filled, as applicable, by the respective appointing authority for each such vacancy.
1023 Notwithstanding anything to the contrary, to the extent that any board member's term expires, a
1024 renewal is not affirmatively enacted and a replacement is not immediately identified, the existing
1025 board member shall remain on the board until the vacancy is filled.

1026 (c) The town appointees shall have demonstrated expertise and education and experience
1027 in 1 or more of the following areas: real estate development, housing, finance, planning, or
1028 engineering. The towns shall cooperate to assure the appointment of directors from as many of
1029 the foregoing disciplines as possible. The chamber and labor appointees shall have demonstrated
1030 expertise in large-scale real estate development and demonstrated expertise in 1 or more of the
1031 following areas: housing, finance, business, planning, environment, transportation or municipal
1032 government.

(d) Five members of the board shall constitute a quorum. The board may act only when a quorum is present, and then only by a majority of those actually voting, which must in all events include at least 4 affirmative votes.

(e) Directors may receive compensation as determined from time to time by the advisory board established by section 11. Directors shall receive reimbursement of such incidental expenses determined by the board to be necessary; provided, however, that the annual compensation of the directors shall not exceed \$6,250 or 80 per cent of the total combined average of the annual salaries of the town councilors of the town of Weymouth, whichever is higher.

(f) Directors shall be residents of the commonwealth. No director or employee of the authority shall be a local elected public official of the town of Abington, Rockland or Weymouth, except that residents of the towns of Abington and Rockland who participate in their respective town meetings shall not be restricted from service as a director or employee of the authority. Each resident appointee shall maintain a legal residence within NAS South Weymouth, and each town appointee shall maintain a legal residence in his or her appointing town, at all times during his or her respective term on the board. Any resident or town appointee who fails to maintain his or her legal residence as required shall be automatically disqualified from further service on the board without need for further action by the board or the relevant appointing authority.

(g) Public employees or appointed officials of the federal government and the commonwealth and its political subdivisions may serve as directors of the authority so long as

1054 their service as director does not constitute a conflict of interest with their duties as public
1055 employees or appointed officials.

1056 (h) Directors shall be subject to chapter 268A of the General Laws.

1057 (i) The directors may, from time to time, by majority vote designate employees of the
1058 authority, consultants and other individuals to participate on boards, commissions, committees
1059 and other organizations established by the authority or otherwise related to the project as a
1060 representative of the directors.

1061 (j) The directors may, from time to time, by majority vote, authorize a person, other than
1062 a majority of the board, to issue endorsements, certificates and other ministerial documents in
1063 furtherance of actions taken by the board.

1064 (k) The officers and directors of the authority shall have the full protections afforded by
1065 section 13 of chapter 258 of the General Laws to the same extent as municipal officers in a city
1066 or town which has accepted said section 13 of said chapter 258.

1067 (l) Sections 18 to 25, inclusive, of chapter 30A of the General Laws shall apply to the
1068 authority.

1069 Section 10. If a director, or member of his immediate family shall be interested either
1070 directly or indirectly, or shall be a director, officer or employee of or have an ownership interest
1071 in a firm or authority interested directly or indirectly, in a contract or other matter involving the
1072 authority, such interest shall be disclosed to the board and shall be set forth in the minutes of the
1073 board. The member having such interest shall not participate on behalf of the authority in any
1074 proceeding or decision relating to such contract or matter. For the purpose of this section,

1075 immediate family shall include spouse, parent, parent-in-law, brother, brother-in-law, sister,
1076 sister-in-law, son, son-in-law, daughter, daughter-in-law and the parent or child of any of such
1077 individuals.

1078 Notwithstanding the foregoing, or the provisions of chapter 268A of the General Laws,
1079 an interest of a resident appointee or of a member of the immediate family of a resident
1080 appointee arising solely on account of the appointee's or immediate family member's residing at
1081 NAS South Weymouth shall not be disqualifying and shall not be deemed an impermissible
1082 conflict of interest.

1083 Section 11. (a) There shall be an advisory board to the authority consisting of: (i) 1 voting
1084 representative appointed by the town of Abington and 1 voting representative appointed by the
1085 town of Hingham; (ii) 2 voting representatives appointed by the town of Rockland and 2 voting
1086 representatives appointed by the mayor of Weymouth; (iii) 1 voting representative of the
1087 Metropolitan Area Planning Council who shall be a member of and be designated by the board of
1088 the council and who shall reside in Norfolk county; (iv) 1 voting representative of the Old
1089 Colony Planning Council who shall be a member of and be designated by the board of the
1090 council and who shall reside in Plymouth county; and (v) 3 voting representatives to be
1091 appointed by the governor, 1 of whom shall be the secretary or a designee, 1 of whom shall be
1092 the secretary of housing and economic development or a designee and 1 of whom shall have
1093 demonstrated skill and expertise in matters relating to real estate development. The members of
1094 the advisory board representing a town shall be appointed by, and serve at the pleasure of, the
1095 mayor of the town of Weymouth or board of selectmen of each such other town. The members of
1096 the advisory board appointed by the Metropolitan Area Planning Council and the Old Colony

1097 Planning Council shall serve at the pleasure of the councils. The members of the advisory board
1098 appointed by the governor shall serve at the pleasure of the governor.

1099 (b) The total voting membership of the advisory board shall be 11 votes, equally
1100 weighted. The advisory board may act at regular periodic meetings called in accordance with its
1101 by-laws or at a special meeting called by the authority or by a quorum of the advisory board. A
1102 quorum of the advisory board shall consist of a majority of its representatives, but in no event
1103 shall it be less than 4 representatives. The advisory board may act by the affirmative vote of a
1104 majority of the representatives present that constitute a quorum.

1105 (c) For the conduct of its business the advisory board shall adopt and may revise and
1106 amend its own by-laws. The advisory board shall elect from among its members a chairperson, a
1107 vice chairperson and a secretary and such other officers as the advisory board may determine.
1108 Each such officer shall serve in such capacity at the pleasure of the advisory board and may be
1109 removed from such position by majority vote of the advisory board. In the event of a vacancy,
1110 the appointing authority shall fill the vacancy for the unexpired term. Each member of the
1111 advisory board shall serve without compensation but may be reimbursed for all reasonable
1112 expenses incurred in the performance of his or her duties as approved by the advisory board and
1113 the authority.

1114 (d) The purposes of the advisory board shall be as follows: (i) to review the annual report
1115 of the authority and to prepare comments thereon for the benefit of the authority, the governor
1116 and the towns, and to make such examinations of the reports on the authority's records and
1117 affairs as the advisory board deems appropriate; (ii) to hold meetings with the board of directors
1118 of the authority and, at the discretion of the advisory board and with the concurrence of the board

1119 of directors of the authority, special meetings with the board of directors of the authority as it
1120 deems necessary and appropriate on matters relating to the authority, and to hold meetings at
1121 other times as the advisory board may determine; (iii) to make recommendations to the authority
1122 on any budget; (iv) to make recommendations to the governor, the general court and the towns
1123 regarding the authority, its programs, and the project; and (v) to determine, from time to time,
1124 compensation for the directors pursuant to section 9.

1125 (e) The authority shall provide such reasonable administrative and staff support to the
1126 advisory board as may be necessary for the efficient discharge of the advisory board's
1127 responsibilities pursuant to this act.

1128 (f) Notwithstanding the provisions of chapter 268A of the General Laws, an interest of an
1129 advisory board member or of a member of the immediate family of an advisory board member
1130 arising solely on account of the member's or immediate family member's residing at NAS South
1131 Weymouth shall not be disqualifying and shall not be deemed an impermissible conflict of
1132 interest.

1133 Section 12. The board may from time to time hire employees and engage outside vendors
1134 or consultants, or both, as necessary to achieve the orderly functioning of the authority.
1135 Employees of the authority shall not be subject to the provisions of chapter 30 or section 45, 46,
1136 51 or 52 of chapter 31 of the General Laws. Employees of the authority shall be subject to the
1137 provisions of chapter 268A of the General Laws. Compensation for employees of the authority
1138 shall be set by the board.

1139 Section 13. The board may hire, fix and pay compensation, prescribe duties and
1140 qualifications and establish personnel policies without regard to any personnel or civil service

1141 law or personnel or civil service rule of the commonwealth. The employees of the authority shall
1142 not be classified employees of the commonwealth. An individual employed by the authority shall
1143 be deemed an employee at will and shall serve at the pleasure of the authority.

1144 Section 14. (a) The zoning by-laws shall remain in effect, subject to their modification
1145 pursuant to the procedures set forth in this section. Such zoning by-laws, as they may be
1146 modified in accordance with this section from time to time, shall supersede the zoning by-laws of
1147 the towns with respect to land in the NAS South Weymouth redevelopment area. In recognition
1148 of the significant number of housing units allowed by the zoning by-laws in proximity to MBTA
1149 communities, the zoning by-laws satisfy the requirements of section 3A of chapter 40A of the
1150 General Laws for the project and each of the towns, as applicable, and the project and each of the
1151 towns will be eligible for any funding that would be available if a municipality complies with
1152 said section 3A of said chapter 40A in recognition of the extent of housing that can be provided
1153 in proximity to MBTA communities as a result of the project. “MBTA community” as used
1154 herein shall mean an MBTA community as defined in 760 CMR 72.00, regulations for said
1155 section 3A of said chapter 40A promulgated by the executive office of housing and livable
1156 communities, in consultation with executive office of economic development, the Massachusetts
1157 Bay Transportation Authority and the Massachusetts Department of Transportation, as may be
1158 amended.

1159 (b) Consistent with current and prior planning for NAS South Weymouth, NAS South
1160 Weymouth shall be developed in accordance with the following principles:

1161 (1) notwithstanding anything to the contrary contained in this act or any other general or
1162 special law or bylaw or regulation of the authority, or in any existing agreement between the

1163 master developer and the authority or any other entity, of the residential units at NAS South
1164 Weymouth, a minimum of 10 per cent shall meet the requirements of “affordable” housing or
1165 “workforce” housing, as such terms are defined in the affordable and workforce housing plan
1166 and the affordable and workforce housing regulations or the new regulations, as applicable.
1167 Affordable or workforce housing constructed within NAS South Weymouth prior to the effective
1168 date of this act shall be counted towards the aggregate 10 per cent minimum requirement;

1169 (2) further development at NAS South Weymouth should be planned and built-out to
1170 incorporate smart growth principles to the extent feasible with a mix of housing and commercial
1171 development, and transportation choices. Whenever feasible, uses at the project should be
1172 designed to be located within walking distance of each other, or even in the same building.
1173 Sustainable and environmentally-friendly development should also be integrated into the project
1174 with water conservation and building designs that comply with generally accepted “green”
1175 design standards. The project should incorporate green building technologies into aspects of its
1176 infrastructure design, construction and operation, and promote the use of green building
1177 technologies by its vertical residential and commercial builders as well;

1178 (3) passive and active recreational facilities shall be included in the further development
1179 of NAS South Weymouth, with such facilities to include but not be limited to the existing
1180 recreation complex, bicycle and walking paths, picnic areas and nature trails; provided, however,
1181 that notwithstanding the generality of the preceding sentence, the master developer shall not be
1182 required to construct or operate a golf course; and

1183 (4) the master developer shall submit to the authority no later than 2 months after the
1184 approval of same by the Natural Heritage and Endangered Species Program an open space

1185 preservation plan, which shall include a plan for addressing all existing runways, taxiways,
1186 traffic control towers and other infrastructure located on any land zoned open space as of the
1187 effective date of this act. In connection with existing and proposed development at NAS South
1188 Weymouth, the project will provide a significant open space area subject to restrictions for the
1189 ongoing protection of habitat and rare species. The following existing restrictions are on record
1190 affecting land within NAS South Weymouth: (i) First Amended and Restated Grant of
1191 Restriction, East End Parcels Restriction, dated October 22, 2013, by LNR South Shore, LLC as
1192 declarant thereunder and (ii) Second Amended and Restated Grant of Restriction, Golf Course
1193 Parcels Restriction, dated February 26, 2014, by LNR South Shore, LLC as declarant thereunder;
1194 items (i) and (ii) collectively referred to herein as the “restrictions”. Notwithstanding any general
1195 or special law to the contrary, any modifications to the restrictions in connection with the
1196 reconfiguration of the proposed protected open space at NAS South Weymouth, including
1197 modifications that release certain land from the restrictions, is allowed and shall not be subject to
1198 any requirement of section 5A of chapter 3 of the General Laws, provided that the
1199 reconfiguration of such open space is consistent with any then-current conservation and
1200 management permit issued by the National Heritage and Endangered Species Program, or its
1201 successor, for the project within NAS South Weymouth redevelopment area.

1202 (c) Major zoning revisions shall not be effective until such revisions are approved by: (i)
1203 the town in which the land that is the subject of such revision is located; and (ii) the board. No
1204 town shall consider a major zoning revision except at the initiative of the applicable town
1205 executive, the master developer, the town’s planning board, the town council in the case of
1206 Weymouth or a person owning land to be affected by the revision. In addition to the
1207 requirements of chapter 40A of the General Laws, upon the filing of any application for major

1208 zoning revision to the town council in Weymouth or town meetings in Abington or Rockland, the
1209 town council or respective town meetings shall give notice of such filing to the authority,
1210 whereupon the authority shall publish a notice of a public hearing in a newspaper or general
1211 circulation within the NAS South Weymouth redevelopment area, and hold at least 1 public
1212 hearing in the NAS South Weymouth redevelopment area or in any 1 of the towns at which the
1213 public shall be afforded the opportunity to comment on the proposed revision. Within 90 days of
1214 receipt of a petition for a proposed major zoning revision, the receiving town shall convene a
1215 meeting of the town council in Weymouth or a town meeting if in Rockland or Abington for the
1216 purpose of adopting the proposed major zoning revision. The towns shall notify the authority of
1217 any major zoning revisions they may adopt, such notice to be provided within 30 days of
1218 obtaining the attorney general's approval of such revision if required pursuant to section 32 of
1219 chapter 40 of the General Laws. All other provisions of chapter 40A of the General Laws shall
1220 apply, except that the towns may reconsider a proposed major zoning revision pursuant to this
1221 act within 6 months of an unfavorable action notwithstanding anything to the contrary in section
1222 5 of said chapter 40A. Pursuant to 53G of chapter 44 of the General Laws, a town may request,
1223 and the master developer may elect to provide, reimbursement for legal fees incurred by the town
1224 in connection with the passage of this act.

1225 (d) The board shall have the authority to make minor zoning revisions as described in the
1226 zoning by-laws. In addition, the board shall within 90 days of the adoption of this act, make all
1227 revisions, if any, to the zoning by-laws necessary to make the zoning by-laws conform to this
1228 act. The authority shall be responsible for maintaining a codification of the zoning by-law that
1229 reflects all major zoning revisions adopted by the various towns and all minor zoning revisions
1230 adopted by the board, and all revisions to the zoning map made pursuant to subsection (e).

1231 (e) Revisions to the zoning map shall be made in accordance with the terms of the zoning
1232 by-laws.

1233 (f) Revisions to the zoning by-laws pursuant to subsection (d) shall be by majority vote of
1234 the board. Prior to approving any minor zoning revision pursuant to said subsection (d), the
1235 authority shall formally notify the Towns, shall publish a notice of public hearing in newspapers
1236 of general circulation within the NAS South Weymouth redevelopment area, shall hold at least 1
1237 public hearing in the NAS South Weymouth redevelopment area or in any 1 of the towns at
1238 which the proposed revision to the zoning by-laws not considered substantial shall be considered
1239 and voted upon, and shall afford the opportunity for public comment at such public hearing. The
1240 administrative provisions of the zoning by-laws or of any other regulation promulgated by the
1241 authority may provide for expedited permitting under which the time frames for actions,
1242 including a failure to take action, applicable to municipalities and their boards, commissions and
1243 agencies under the provisions of the General Laws may be shortened. Nothing in this section
1244 shall require the authority to be governed by the requirements of chapter 30A of the General
1245 Laws.

1246 (g) The procedures set forth in this section for adopting revisions to the zoning by-laws
1247 shall be exclusive notwithstanding any general or special law to the contrary.

1248 (h) Regulations for the effective implementation and enforcement of the zoning by-laws
1249 and revisions thereof shall be developed and adopted by the authority, pursuant to section 6. No
1250 regulation shall be adopted by the authority without first publishing notice of same in a
1251 newspaper of general circulation within the NAS South Weymouth redevelopment area, holding
1252 at least one public meeting in the NAS South Weymouth redevelopment area or in any one of the

towns, and affording the opportunity for public comment. Nothing in this section shall require the authority to be governed by the requirements of chapter 30A of the General Laws.

(i)(1) As authorized in subsection (t) of section 6, the authority shall have exclusive authority to issue and enforce land use, subdivision and zoning permits, approvals, orders of conditions and other entitlements pursuant to the zoning by-law, regulations promulgated pursuant to subsection (h), subdivision regulations, and wetland protection laws in effect within the NAS South Weymouth redevelopment area. Such authority shall include the exclusive jurisdiction to sit as a permit granting authority pursuant to section 15 of chapter 40A of the General Laws. Notwithstanding anything to the contrary contained in this act or any other general or special law or bylaw or regulation of the authority, or in any existing agreement between the master developer or the authority or any other entity, or any combination of the foregoing parties, for the purposes of all projects at the NAS South Weymouth redevelopment area for which construction commences after the effective date of this act, there shall be a new set of regulations developed by the authority governing development, including, without limitation, regarding affordable and workforce housing, and land use, zoning, subdivision and wetlands administration, in each case, in place of any existing regulations in place. Administration of the following municipal powers pursuant to the General Laws that do not involve the administration by the authority of such land use, subdivision, zoning and wetland controls and related entitlement activities shall remain with the towns in which the applicable real property is located unless expressly granted to said authority in this act or elsewhere: (i) issuance of building permits by the inspectional services department; (ii) public-health and safety-related matters under the jurisdiction of the local board of health; and (iii) issuance of liquor licenses. If any building or structure is proposed to be constructed on a lot located within 2

1276 or more towns, the building department or board of health or licensing department, as
1277 appropriate, of the town in which the majority of the gross floor area of the building or structure
1278 is to be located shall have exclusive jurisdiction. Once construction or operation, as appropriate,
1279 has begun pursuant to the applicable permit or license, the town with such jurisdiction shall
1280 retain such jurisdiction, even if subsequent improvements cause the majority of the gross floor
1281 area or operation to be located thereafter in the other town.

1282 (2) The town of Weymouth may issue a maximum of 13 alcoholic beverage licenses
1283 within the portion of the NAS South Weymouth redevelopment area located within Weymouth
1284 in accordance with chapter 138 of the General Laws, the town of Abington may issue a
1285 maximum of 2 alcoholic beverage licenses within the portion of the NAS South Weymouth
1286 redevelopment area located within Abington in accordance with chapter 138 and the town of
1287 Rockland may issue a maximum of 13 alcoholic beverage licenses within the portion of the NAS
1288 South Weymouth redevelopment area located within Rockland in accordance with said chapter
1289 138; provided, however, that said licenses shall not diminish the number of licenses permitted by
1290 the commonwealth to be granted elsewhere within the towns of Weymouth or Rockland. None of
1291 the licenses authorized by this section shall be transferable outside the NAS South Weymouth
1292 redevelopment area. Nothing in this section shall be deemed to limit the ability of the towns to
1293 issue entertainment licenses and temporary alcoholic beverage licenses as it deems necessary and
1294 appropriate for activities occurring within their respective borders.

1295 (j) All decisions and determinations of the authority, whether legislative or adjudicatory
1296 in nature, shall be appealable by persons aggrieved by such decision or determination in
1297 accordance with applicable provisions of the General Laws. Where any applicable General Law
1298 requires notice of any such appeal to be filed with a municipal clerk, such filing shall be made

1299 with the clerk of the authority, and with the clerk of the town or towns in which the land subject
1300 to such decision or determination is located.

1301 (k) Nothing in this act shall be interpreted as modifying or abrogating any permit,
1302 approval or entitlement issued by the commonwealth in relation to the project and pursuant to
1303 any law relating to the protection of human health or the environment.

1304 Section 15. Anything developed within the NAS South Weymouth redevelopment area as
1305 of the effective date of this act shall be governed by the then-existing zoning by-laws and
1306 regulations promulgated by the authority and currently in effect. The board is hereby directed, (i)
1307 within 120 days of the effective date of this act, to revise, re-promulgate, re-issue, re-negotiate
1308 and re-execute, as needed, all regulations promulgated by the authority and currently in effect; or
1309 (ii) prior to commencement of any new development by the master developer at NAS South
1310 Weymouth, to enter into the new regulations or any agreements, including the ENA or DDA, as
1311 mutually determined by the authority and the master developer to be necessary, for the purpose
1312 of governing any development to occur within the NAS South Weymouth redevelopment area
1313 following the effective date of this act. Without limiting the generality of the foregoing, the
1314 DDA, as renegotiated pursuant to this section shall:

1315 (a) require that the master developer work with the authority and the towns to develop a
1316 plan for procuring, financing, operating and maintaining the existing and permanent water and
1317 wastewater infrastructure for the project. The permanent water and wastewater infrastructure
1318 may include the construction of a wastewater treatment plant and associated groundwater
1319 discharge facilities. Nothing in this section shall prevent the master developer, the authority or
1320 the towns from mutually agreeing to assign or delegate the operation and maintenance of the

1321 existing or permanent water and wastewater infrastructure to qualified parties including, without
1322 limitation, any of the towns; and

1323 (b) not include any provision imposing monetary penalties or forfeitures on the master
1324 developer in the event the master developer elects not to develop a golf course as part of the
1325 project.

1326 Section 16. The executive office for administration and finance and the executive offices
1327 of housing and livable communities, economic development and labor and workforce
1328 development shall identify a senior staff member who shall assist the towns with establishing a
1329 method for coordinating 1-stop licensing for all businesses and developments to be located
1330 within the NAS South Weymouth redevelopment area for the purpose of expediting the process
1331 for obtaining commonwealth licenses, permits, certificates, approvals, registrations, charters and
1332 meeting any other requirements of law.

1333 Section 17. Each public agency in the commonwealth, including, without limitation,
1334 agencies such as the Massachusetts Department of Transportation, the department of
1335 environmental protection and the Massachusetts water resources authority, involved in the
1336 development or financing of economic development projects shall develop a coordinated 1-stop
1337 program for businesses, institutions and private parties that may intend to locate in the NAS
1338 South Weymouth redevelopment area in order to enable development activities within the NAS
1339 South Weymouth redevelopment area to be more effectively promoted by the commonwealth.
1340 Further, to promote efficient redevelopment, any construction within or modifications to the
1341 layout of the parkway located within NAS South Weymouth in connection with the project shall
1342 solely require the approval of the authority.

Section 18. (a) The authority may fix, revise, charge, collect, levy and abate betterments, assessments, special assessments and fees, and other charges for the cost, administration and operation of the infrastructure improvements. In providing for the payment of the cost of the infrastructure improvements or for the use of the infrastructure improvements, the authority may avail itself of the General Laws relative to the assessment, apportionment, division, fixing, reassessment, revision, abatement and collection of infrastructure charges, including betterments, assessments, special assessments and fees by municipalities, or the establishment of liens therefor and interest thereon, and the procedures set forth in sections 5 and 6 of chapter 254 of the General Laws for the foreclosure of liens, as it shall deem necessary and appropriate for purposes of the assessment and collection of such infrastructure improvement charges.

Notwithstanding any general or special law to the contrary, the authority may pay the entire cost of any infrastructure improvements, including the acquisition thereof, during construction or after completion, or the debt service of notes or bonds used to fund such costs, from betterments, assessments, special assessments, fees, or other charges, and may establish the betterments, assessments, special assessments, fees or other charges, prior to, during, or a reasonable time following the completion of the construction of such infrastructure improvements. The authority may establish a schedule for the payment of betterments, assessments, special assessments, fees or other charges, not to exceed 40 years. The authority may determine the circumstances under which the betterments, assessments, special assessments, fees and other charges, may be increased, if at all, as a consequence of delinquency or default by the owner of that parcel or any other parcel within the NAS South Weymouth redevelopment area.

(b) The betterments, assessments, special assessments, fees and other charges of general application authorized by this act may be increased in accordance with the procedures to be

established by the authority for assuring that interested persons are afforded notice and an opportunity to present data, views and arguments. The initial schedule of assessments, special assessments, fees and other charges, may be adopted by the authority at any scheduled meeting of the board, provided that notice of the meeting, and the proposed schedule, is sent to each owner of a parcel within the NAS South Weymouth redevelopment area, by registered or certified mail at least 7 days prior to the meeting. Thereafter, the authority shall hold at least 1 public hearing on a revision to its schedule of betterments, assessments, special assessments, fees and other charges thereof prior to adoption by the authority, notice of which revisions shall be delivered to the towns and shall be published in a newspaper of general circulation in each of the towns at least 1 month in advance of the hearing. No later than the date of such publications, the authority shall make available to the public and deliver to the towns the proposed revisions to the schedule of special assessments, fees, betterments, assessments and other charges. The betterments, assessments, special assessments, fees and other charges established by the authority shall not be subject to supervision or regulation by any department, division, commission, board, bureau or agency of the commonwealth or its political subdivisions, including without limitation, the towns, except for the approval of the taxation plan and any amendments thereof requiring approval by the secretary and commissioner of revenue.

(c) The betterments, assessments, special assessments, fees and other charges established by the authority in accordance with this act shall be fixed and adjusted in respect of the aggregate thereof so as to provide revenues sufficient: (i) to pay the principal of, premium, if any, and interest on bonds, notes or other evidences of indebtedness issued by the authority under this act as the same become due and payable; (ii) to create and maintain such reasonable reserves as may be reasonably required by a trust agreement or resolution securing bonds or notes; (iii) to provide

1389 funds for paying the cost of necessary repairs, replacements and renewals of infrastructure
1390 improvements; and (iv) to pay or provide for an amount that the authority may be obligated to
1391 pay or provide for by law or contract, including a resolution or contract with or for the benefit of
1392 the holders of its bonds and notes, provided that the authority shall not be required to increase
1393 any mandatory betterments, assessments, special assessments, fees or other charges by virtue of
1394 any individual proprietor delinquencies. Nothing herein shall be deemed to impose a limitation
1395 on the authority's ability to establish, set, or impose betterments, assessments, special
1396 assessments, fees or charges at levels sufficient to meet any covenant requirements that may be
1397 contained in any resolution or contract with or for the benefit of the holders of its bonds or notes,
1398 or otherwise providing security for the same.

1399 (d) As an alternative to levying betterments, assessments, special assessments, fees and
1400 other charges under this act or the General Laws, the authority may levy special assessments on
1401 real estate within the NAS South Weymouth redevelopment area to finance the cost,
1402 administration and operation of the infrastructure improvements. In determining the basis for and
1403 amount of the special assessment, the cost, administration, maintenance and operation of the
1404 infrastructure improvements, including the cost of the repayment of the debt issued or to be
1405 issued by the authority to finance the improvements, may be calculated and levied using any of
1406 the following methods that result in fairly allocating the costs of the infrastructure improvements
1407 to the real estate in the NAS South Weymouth redevelopment area: (1) equally per length of
1408 frontage, or by lot, parcel or dwelling unit, or by the square footage of a lot, parcel or dwelling
1409 unit; (2) according to the value of the property; or (3) in any other reasonable manner that results
1410 in fairly allocating the cost, administration and operation of the infrastructure improvements,

1411 according to the benefit conferred or use received including, but not limited to, by classification
1412 of commercial or residential use or distance from the infrastructure improvements.

1413 (e) The authority may also provide for the following: (1) a maximum amount to be
1414 assessed with respect to any parcel; (2) a tax year or other date after which no further special
1415 assessments under this section shall be levied or collected on a parcel; (3) annual collection of
1416 the levy without subsequent approval of the authority; (4) the circumstances under which the
1417 special assessment levied against a parcel may be increased, if at all, as a consequence of
1418 delinquency or default by the owner of that parcel or any other parcel within the NAS South
1419 Weymouth redevelopment area; and (5) procedures allowing for the prepayment of betterments,
1420 assessments, special assessments, fees and other charges under this act.

1421 (f) Betterments, assessments, special assessments, fees and other charges levied under
1422 this act shall be collected and secured in the same manner as property taxes, betterments,
1423 assessments and fees owed to the towns unless otherwise provided by the authority and shall be
1424 subject to the same penalties and the same procedure, sale and lien priority in case of
1425 delinquency as is provided for such property taxes, betterments and liens owed to the towns.

1426 (g) The appellate tax board shall have jurisdiction within the NAS South Weymouth
1427 redevelopment area pursuant to chapter 58A of the General Laws to the same extent as its
1428 jurisdiction in cities and towns. The authority shall have exclusive responsibility for paying any
1429 reimbursement payments owed under section 69 of chapter 59 of the General Laws, or otherwise,
1430 as a result of the abatement, by such board or another body of competent jurisdiction, of any
1431 property tax assessments made by the authority prior to the complete transition of the assessing
1432 and taxing power to the towns pursuant to subsection (a) of section 19.

1433 Section 19. (a) Notwithstanding any general or special law to the contrary, property taxes
1434 upon personal property, persons, residents and estates lying within the NAS South Weymouth
1435 redevelopment area, shall, commencing as of January 1, 2015, for the fiscal year commencing
1436 July 1, 2015, be imposed, levied and administered by each town for its respective portion of
1437 NAS South Weymouth, consistent with the General Laws that are applicable to municipalities.
1438 The towns shall collect upon the estates, real and personal, within NAS South Weymouth a
1439 property tax rate equal to the base rate plus the Southfield rate. In connection with the foregoing,
1440 the towns shall have all the powers and authority of cities and towns under chapters 40, 59, 60,
1441 60A, 61B and section 3A of chapter 64G of the General Laws including, with respect to unpaid
1442 taxes due and owing as a result of prior assessments by the South Shore Tri-Town Development
1443 Corporation, the exclusive power to exercise enforcement and collection rights pursuant to said
1444 chapter 60 of the General Laws and other relevant law, and may accept a local option under a
1445 general or special law related to the assessment, exemption or enforcement of property taxes and
1446 excises that cities and towns may accept. A property tax bill issued by a town pursuant to this
1447 subsection prior to the town's first opportunity to issue assessments pursuant to section 21 of
1448 said chapter 59 shall be based on the assessed value established by the town in its most recent
1449 assessment of the property in question or such other assessed value as may have been determined
1450 for such property through abatement proceedings. The board shall notify each town of the
1451 Southfield rate to be charged in the next following fiscal year no later than June 1 of each year,
1452 and of the amount of pledged revenue to be remitted to the authority in the next following fiscal
1453 year, as provided below. The Southfield rate shall not be set for any given fiscal year until at
1454 least 45 days after the board provides each executive with written notice of and an opportunity to
1455 comment on the proposed rate and the Authority operating budget on which it is based. During

1456 such 45-day period, the executives in Rockland and Abington, and the town council in
1457 Weymouth to which the rate-setting notice shall be referred by the mayor of Weymouth may
1458 convene a public hearing for the purpose of obtaining public comment on the proposed
1459 Southfield rate. No later than 30 days after collection of property taxes for each fiscal quarter,
1460 each town shall remit to the authority the Southfield revenue collected by such town in the
1461 preceding fiscal quarter. Each town shall also remit to the authority, pledged revenue within 30
1462 days of billing from the authority. Nothing in this act shall be deemed to limit a town's ability, in
1463 respect of any given fiscal year or other period, to remit property tax revenue in excess of
1464 Southfield revenue to the authority. Southfield revenue shall not be deemed to constitute any part
1465 of "total taxes assessed" by the towns for the purposes of administering section 21C of chapter
1466 59 of the General Laws. Land and improvements located within each town's respective portion
1467 of NAS South Weymouth shall, in the fiscal year commencing July 1, 2015, be deemed for all
1468 purposes to be additional new growth within that town within the meaning of paragraph (f) of
1469 section 21C of said chapter 59 and section 23D of said chapter 59.

1470 (b) In consideration of the collection and retention of base revenue pursuant to
1471 subsection(a), each town shall be responsible for providing police and fire protection, emergency
1472 services, schools, maintenance of all public ways or ways maintained and used as public ways,
1473 public works, inspectional and other municipal services, including waste collection, to its
1474 respective portion of NAS South Weymouth except for portions owned or controlled by agencies
1475 of the United States government on the same basis and terms as it provides such services to other
1476 parts of the town and as required by applicable law. Notwithstanding the generality of the
1477 preceding sentence, no town shall be required to provide water or sewer services to any portion
1478 of NAS South Weymouth except pursuant to agreement with the authority or the master

1479 developer. For purposes of determining state education assistance, including without limitation
1480 the calculation of each town's foundation enrollment under chapter 70 of the General Laws, each
1481 school-age child living within NAS South Weymouth shall be counted as a child enrolled in the
1482 town in which the child resides, and all expenses incurred by each respective town on behalf of
1483 such children's education shall be included as expenses of the town incurring such costs in the
1484 determination of each respective town's share of such assistance, including without limitation
1485 each town's foundation budget under said chapter 70.

1486 (c) The authority and the master developer, as the case may be, at its election, shall take
1487 all actions necessary to transfer to the applicable town control of all existing public ways, or
1488 ways maintained and used as public ways, located within NAS South Weymouth, together with
1489 associated infrastructure including public utilities and sewer and storm drain lines located within
1490 or adjacent to the rights of way of such ways, and each town shall, without regard to the
1491 requirements of chapter 82 of the General Laws or other general or special laws, accept the
1492 applicable portion of such way or ways as a public way in said town. The authority and the
1493 master developer, as the case may be, at its election, shall take all actions necessary to transfer to
1494 the applicable town control of, and each town shall accept as a public way, any new public way
1495 and associated infrastructure developed, constructed or acquired by the authority or the master
1496 developer, as the case may be, within NAS South Weymouth following the effective date of this
1497 act provided the board has approved the layout and construction of such way is consistent with
1498 the authority's subdivision regulations, and provided further that the customary street acceptance
1499 procedures of the town in which the way is to be accepted as a public way are substantially
1500 satisfied and such town agrees that the way has been constructed in accordance with the
1501 authority's subdivision regulations. Notwithstanding any general or special law to the contrary:

1502 (i) public ways or portions thereof located within NAS South Weymouth and for which a town
1503 accepts pursuant to this subsection shall be included in the apportionment for such town of state
1504 assistance to cities and towns under chapter 90 of the General Laws or under any other statute or
1505 program providing financial assistance to cities and towns of the commonwealth in connection
1506 with transportation matters; (ii) any other attributes of a town located within NAS South
1507 Weymouth including without limitation population and employment shall likewise be included
1508 for purposes of such apportionment; and (iii) improvement, maintenance, repair or other projects
1509 related to said public ways shall be eligible for such assistance.

1510 (d) Any existing agreements or obligations owed between the towns or the authority or
1511 the prior master developer, or any combination of the foregoing parties, as applicable, related to
1512 the development within the NAS South Weymouth redevelopment area shall be rescinded and
1513 shall have no further force and effect as of January 1, 2020, unless affirmatively assumed by the
1514 authority or the master developer in writing, whether in a new agreement or an amendment or
1515 restatement of such existing agreements or obligation.

1516 (e) Following the termination of the authority in accordance with section 33, each town
1517 shall have the authority to assess, impose, levy and collect property taxes on properties located
1518 within its respective portion of the NAS South Weymouth redevelopment area on the same basis
1519 as such town administers its property tax collection system elsewhere within the town.

1520 (f) Taxes within NAS South Weymouth are currently levied and assessed consistent with
1521 the taxation plan dated October 13, 2014 that was approved by the secretary and the
1522 commissioner of revenue, which taxation plan may be revised from time to time. The taxation
1523 plan details the specific powers and duties of the authority and the towns; provide for the timely

1524 transfer of assessment and collection records from the authority to the towns; detail the oversight
1525 to be provided by the commissioner of revenue regarding the base rate and Southfield rate,
1526 including required reports and other information; and address such other pertinent matters as
1527 determined by the secretary and the commissioner of revenue.

1528 Section 20. (a) The authority may provide by resolution of the board for the issuance of
1529 bonds and notes of the authority for the purposes of paying or refinancing all or any part of the
1530 cost of the project and its infrastructure improvements. Such cost shall include the cost of: (1)
1531 construction, reconstruction, renovation and acquisition of all lands, structures, real or personal
1532 property, rights, rights-of-way, franchises, easements and interests acquired or to be acquired by
1533 the authority, the towns, the commonwealth or any other political subdivision thereof, including
1534 the costs of any infrastructure and improvements to be transferred to the towns in accordance
1535 with subsection (c) of section 19; (2) all machinery and equipment including machinery and
1536 equipment needed to expand or enhance services from the towns, the commonwealth or a
1537 political subdivision thereof to the authority; (3) financing charges and interest prior to and
1538 during construction, and for a period not exceeding 1 year after completion of the construction,
1539 interest and reserves for principal and interest, including costs of municipal bond insurance and
1540 any other type of financial guaranty and costs of issuance; (4) extensions, enlargements,
1541 additions and enhancements to infrastructure improvements; (5) architectural, engineering,
1542 financial and legal services; (6) plans, specifications, studies, surveys and estimates of costs and
1543 of revenues; (7) administrative expenses necessary or incident to the construction, acquisition,
1544 financing, operation and maintenance of the project; and (8) other expenses as may be necessary
1545 or incident to the construction, acquisition, operation, maintenance and financing of the
1546 infrastructure improvements, including the cost of issuing bonds or notes. The authority may

1547 issue up to \$175,000,000 of its bonds. The authority may issue bonds secured in whole or in part
1548 by betterments, assessments, special assessments, fees and other charges, notes, debentures, long
1549 term capital leases, grants and governmental assistance and long-term contracts; provided that,
1550 for so long as the 2020A bonds are outstanding, the authority may not secure any bonds or notes
1551 issued after the effective date of this section with a pledge or other commitment of ad valorem
1552 property taxes assessed by the authority or the towns pursuant to said section 19 with respect to
1553 any of the assessable property under the Trust Indenture. The principal of and interest on such
1554 bonds shall be payable solely from the funds which are identified by the authority and are
1555 permitted by this act to provide for such payment. The bonds of each issue shall be dated, shall
1556 bear interest at such rates, which may be variable or fixed, and shall mature at times not
1557 exceeding 35 years from their dates of initial issuance, as the authority may determine, and may
1558 be made redeemable before maturity, at the option of the authority, at such prices and under such
1559 terms and conditions as the authority may fix prior to the issuance of the bonds. The authority
1560 shall determine the form of the bonds and the manner of execution of the bonds, and shall fix the
1561 denominations of the bonds and the places of payment of principal and interest, which may be at
1562 a bank or trust company within or without the commonwealth and such other locations as
1563 designated by the authority. In the event an officer whose signature or a facsimile of whose
1564 signature shall appear on any bonds shall cease to be an officer before the delivery of the bonds,
1565 the signature or facsimile shall nevertheless be valid and sufficient for all purposes as if such
1566 officer had remained in office until the delivery. The bonds shall be issued in registered form.
1567 The authority may sell the bonds in a manner and for a price, either at public or private sale, as it
1568 may determine to be for the best interests of the authority.

1569 (b) Prior to the preparation of definitive bonds, the authority may, under like restrictions,
1570 issue interim receipts or temporary notes, with or without coupons, exchangeable for definitive
1571 bonds when such bonds have been executed and are available for delivery. The authority may
1572 also provide for the replacement of bonds that shall become mutilated or shall be destroyed or
1573 lost. The authority may issue, from time to time, notes of the authority in anticipation of federal,
1574 state or local grants for the cost of the project and acquiring, constructing or improving the
1575 infrastructure improvements. The notes shall be authorized, issued and sold in the same manner
1576 as provided in, and shall otherwise be subject to, this act. Such notes shall mature at such times
1577 as provided by the issuing resolution of the authority and may be renewed from time to time;
1578 provided, however, that all such notes and renewals thereof shall mature on or before 20 years
1579 from their date of issuance. Bonds and notes may be issued under this act subject only to those
1580 proceedings, conditions or things that are specifically required by this act.

1581 (c) The authority may provide by resolution for issuance of refunding bonds of the
1582 authority for the purpose of refunding bonds then outstanding at maturity or upon acceleration or
1583 redemption. Refunding bonds may be issued at such times prior to the maturity or redemption of
1584 the refunded bonds as the authority deems to be in the public interest. Refunding bonds may be
1585 issued in sufficient amounts to pay or provide for the principal of the bonds being refunded under
1586 this act, and the payment of a redemption premium thereon and interest accrued or to accrue to
1587 the date of redemption of such bonds, and, if deemed advisable by the authority, for the
1588 additional purpose of paying any cost of the project, including the acquisition, constructing or
1589 reconstructing of the infrastructure improvements. The issuance of such bonds, the maturities
1590 and other details thereof, the rights of the holders thereof, and the duties of the authority in
1591 respect to the same shall be governed by this act insofar as the same may be applicable.

(d) While bonds issued by the authority remain outstanding, the powers, duties or existence of the authority shall not be diminished or impaired in any way that will adversely affect the interests and rights of the holders of such bonds.

(e) The board may by resolution delegate to a person, other than a majority of the board, the power to determine any of the matters set forth in this section.

(f) Bonds and notes issued under this section, unless otherwise authorized by law, shall not be deemed to constitute a debt of the commonwealth or of the towns, or a pledge of the faith and credit of the commonwealth or of the towns, but such bonds shall be payable solely from the funds of the authority or as otherwise provided in this act. Unless the towns or the commonwealth subsequently agree to pay the bonds or notes of the authority, such bonds and notes shall contain on their faces a statement to the effect that neither the commonwealth nor the towns shall be obliged to pay the same or the interest thereon and that neither the faith and credit nor taxing power of the commonwealth or the towns is pledged to the payment of the principal of or the interest on such bonds or notes. Without limiting the generality of the foregoing, nothing in this act shall be construed as imposing on any town any obligation with respect to the repayment of the series 2020A bonds and any debt issued by the authority pursuant to this act.

(g) All bonds or notes issued under this act shall have all the qualities and incidents of negotiable instruments as defined in section 3-104 of chapter 106 of the General Laws.

(h) Prior to the issuance of bonds with a maturity date later than the date the authority is required to be terminated pursuant to section 33, the mayor of the town of Weymouth and boards of selectmen of the towns of Abington and Rockland, in consultation with the authority, shall enter into an intermunicipal debt service agreement acceptable to the authority, which shall

1614 provide for the continued payment of principal and interest on such bonds and the maintenance
1615 of all required reserves and any other obligations as may be set forth in the applicable bond
1616 instruments from betterments, assessments, special assessments, fees, other charges and other
1617 revenues generated in the NAS South Weymouth redevelopment area and the authority and the
1618 towns may enter into and perform their respective obligations under such debt service
1619 agreement; provided, however, that such agreement shall not extend the duration of the authority
1620 past the date on which it is to be terminated pursuant to section 33.

1621 Section 21. (a) In the discretion of the authority, bonds, refunding bonds or notes may be
1622 secured by a trust agreement by and between the authority and a corporate trustee, which may be
1623 a trust company or bank having the powers of a trust company within or without the
1624 commonwealth. Such trust agreement may pledge or assign the revenues to be received, but shall
1625 not convey or mortgage the project or a part thereof.

1626 (b) Either the resolution providing for the issuance of bonds or notes or the trust
1627 agreement may contain provisions for protecting and enforcing the rights and remedies of the
1628 bondholders as may be reasonable and proper and not in violation of law, including, without
1629 limiting the generality of the foregoing, provisions defining defaults and providing for remedies
1630 in the event thereof, which may include the acceleration of maturities and covenants setting forth
1631 the duties of, and limitations on, the authority in relation to the acquisition, maintenance,
1632 operation, insurance and disposition of property, custody, safeguarding, investment, application
1633 of moneys, use of any surplus bond or note proceeds and establishment of reserves. Such
1634 resolution or trust agreement may contain, but shall not be limited to, covenants by the authority
1635 in relation to the following: (i) the establishment, revision and collection of such betterments,
1636 assessments, special assessments, fees and other charges for services or facilities furnished or

1637 supplied by the authority as shall provide revenues which together with other revenues of the
1638 project, if any, are sufficient to pay: (1) the cost of maintaining, repairing and operating the
1639 project and of making renewals and replacements in connection therewith, (2) the principal of
1640 and the interest on the bonds or notes, as the same shall become due and payable, (3) payments
1641 in lieu of taxes, betterments, assessments, special assessments, fees and other charges and (4)
1642 reserves for all such purposes; (ii) the purposes for which the proceeds of the sale of the bonds or
1643 notes shall be applied and the use and disposition thereof; (iii) the use and disposition of the
1644 gross revenues of the authority from the project, additions thereto and extension and the
1645 infrastructure improvements thereof, including the creation and maintenance of funds for
1646 working capital and for renewals and replacements to the project; (iv) the amount, if any, of
1647 additional bonds or notes payable from the revenues of the project and the limitations, terms and
1648 conditions on which such additional bonds or notes may be issued; and (v) the operation,
1649 maintenance, management, accounting and auditing of the project and of the income and
1650 revenues of the authority.

1651 (c) It shall be lawful for a bank or trust company within or without the commonwealth to
1652 act as depository of the proceeds of bonds or revenues and to furnish such indemnifying bonds or
1653 to pledge such securities as may be required by the authority. Such trust agreement may set forth
1654 the rights and remedies of the bondholders and of the trustee and may restrict the individual right
1655 of action by bondholders as is customary in trust agreements or trust indentures securing bonds
1656 and debentures of authorities. Such trust agreement may contain other provisions as the authority
1657 may deem reasonable and proper for the security of the bondholders. All expenses incurred in
1658 carrying out the provisions of such trust agreement may be treated as a part of the cost of the
1659 operation of the project. The pledge by any such trust agreement or resolution shall be valid and

1660 binding from the time when the pledge is made. The revenues or other moneys so pledged and
1661 then held or thereafter received by the authority shall immediately be subject to the lien of such
1662 pledge without a physical delivery thereof or further act. The lien of any such pledge shall be
1663 valid and binding as against all parties having claims of any kind in tort, contract or otherwise
1664 against the authority, irrespective of whether such parties have notice thereof. The financing
1665 document by which any pledge is created by the authority shall not be required to be filed or
1666 recorded to perfect such pledge except in the official records of the authority and no uniform
1667 commercial code filing shall be required to be made. A pledge or assignment made by the
1668 authority is an exercise of its political and governmental powers, and revenues, funds, assets,
1669 property and contract or other rights to receive the same and the proceeds thereof which are
1670 subject to the lien of a pledge or assignment created under this act shall not be applied to
1671 purposes not permitted by the pledge or assignment.

1672 (d) In addition to other security provided herein or otherwise by law, bonds, notes or
1673 obligations issued by the authority under this act may be secured, in whole or in part, by a letter
1674 of credit, line of credit, bond insurance policy, liquidity facility or other credit facility for the
1675 purpose of providing funds for payments in respect of bonds, notes or other obligations required
1676 by the holder thereof to be redeemed or repurchased prior to maturity or for providing additional
1677 security for such bonds, notes or other obligations. In connection therewith, the authority may
1678 enter into reimbursement agreements, remarketing agreements, standby bond purchase
1679 agreements and any other necessary or appropriate agreements. The authority may pledge or
1680 assign the authority's revenues as security for the reimbursement by the authority to the
1681 providers of such letters of credit, lines of credit, bond insurance policies, liquidity facilities or

1682 other credit facilities of any payments made under the letters of credit, lines of credit, bond
1683 insurance policies, liquidity facilities or other credit facilities.

1684 (e) In connection with, or incidental to, the issuance of bonds, notes or other obligations,
1685 the authority may enter into such contracts as it may determine to be necessary or appropriate to
1686 place the bonds, notes or other obligations of the authority, as represented by the bonds or notes,
1687 or other obligations in whole or in part, on such interest rate or cash flow basis as the authority
1688 may determine, including without limitation, interest rate swap agreements, insurance
1689 agreements, forward payment conversion agreements, futures contracts, contracts providing for
1690 payments based on levels of, or changes in, interest rates or market indices, contracts to manage
1691 interest rate risk, including without limitation, interest rate floors or caps, options, puts, calls and
1692 similar arrangements. Such contracts shall contain such payment, security, default, remedy and
1693 other terms and conditions as the authority may deem appropriate and shall be entered into with
1694 such parties as the authority may select, after giving due consideration, where applicable, for the
1695 creditworthiness of the counter parties, including a rating by a nationally-recognized rating
1696 agency, the impact on a rating on outstanding bonds, notes or other obligations or other criteria
1697 the authority may deem appropriate.

1698 (f) The authority shall have the power to purchase its bonds or notes out of any funds
1699 available therefor. The authority may hold, pledge, cancel or resell such bonds or notes, subject
1700 to and in accordance with agreements with bondholders.

1701 (g) Any moneys received by the authority, whether as proceeds from the issuance of
1702 bonds or notes, or as revenue or otherwise, may be designated by the board as trust funds to be
1703 held and applied solely as provided in this act.

1704 Section 22. Bonds, refunding bonds and notes issued under this act shall be securities in
1705 which all public officers and public bodies of the commonwealth and its political subdivisions,
1706 all insurance companies, trust companies and their commercial departments and within the limits
1707 set forth in chapter 172 of the General Laws, banking associations, investment companies,
1708 executors, trustees and other fiduciaries, and all other persons whatsoever who are now or may
1709 hereinafter be authorized to invest in bonds or other obligations of a similar nature may properly
1710 and legally invest funds, including capital in their control or belonging to them; and such bonds
1711 are shall be obligations that may properly and legally be made eligible for the investment of
1712 savings deposits and the income thereof in the manner provided in chapter 168 of the General
1713 Laws. Such bonds shall be securities that may properly and legally be deposited with and
1714 received by a state or municipal officer or an agency or political subdivision of the
1715 commonwealth for a purpose for which the deposit of bonds or other obligations of the
1716 commonwealth is now or may hereafter be authorized by law.

1717 Section 23. A holder of bonds or notes issued under this act and a trustee under a trust,
1718 except to the extent the rights herein given may be restricted by the trust agreement, may, either
1719 at law or in equity, by suit, action, mandamus or other proceeding, protect and enforce all rights
1720 under the laws of the commonwealth or granted hereunder or under the trust agreement, and may
1721 enforce and compel the performance of all duties required by this act or by the trust agreement,
1722 to be performed by the authority or by an officer thereof.

1723 Section 24. The towns and the commonwealth are pledged to agree with the holders of
1724 the bonds or notes that neither the towns nor the commonwealth shall limit or alter or cause to
1725 limit or alter the rights hereby vested in the authority to acquire or maintain the project or
1726 infrastructure improvements, to establish and collect betterments, assessments, special

1727 assessments, fees and other charges and to fulfill the terms of any agreements made with the
1728 holders of the bonds or notes nor impair the rights and remedies of the bondholders or
1729 noteholders, until the bonds or notes, together with interest thereon, with interest on any unpaid
1730 installments of interest and all costs and expenses in connection with an action or proceeding by
1731 or on behalf of the bondholders or noteholders, are fully met and discharged.

1732 Section 25. (a) The creation of the authority and the carrying out of its corporate purposes
1733 shall be for the benefit of the people of the commonwealth and shall be a public purpose, and the
1734 authority shall be regarded as performing a governmental function in the exercise of the powers
1735 conferred upon it by this act and shall be required to pay no taxes or assessments upon any of the
1736 property acquired by it or under its jurisdiction, control or supervision or upon its activities.

1737 (b) Any bonds issued under this act, including an exchange, sale or transfer of such
1738 bonds, and any income derived therefrom, and the property of the agency shall at all times be
1739 free from taxation by the commonwealth or any political subdivision or entity thereof to the
1740 extent permitted by federal law.

1741 (c) Bonds or notes issued under this act shall be subject to the same reporting and
1742 oversight requirements that apply to a municipality under the General Laws.

1743 Section 26. The authority shall be liable in contract and in tort in the same manner as a
1744 municipal authority. The directors, officers, employees and agents of the authority, including
1745 members of the advisory board established pursuant to section 10, shall not be liable as such on
1746 their contracts or for torts not committed or directly authorized by them. The property or funds of
1747 the authority shall not be subject to attachment or to levy and sale on execution, but if the
1748 authority refuses to pay a judgment entered against it in a court of competent jurisdiction, the

1749 superior court, sitting within and for Norfolk county or Plymouth county, may direct the
1750 treasurer of the authority to pay such judgment. The real estate owned by the authority shall not
1751 be subject to liens under chapter 254 of the General Laws, but sections 28 and 29 of chapter 149
1752 of the General Laws shall be applicable to any construction work by the authority.

1753 Section 27. Notwithstanding any general or special law to the contrary, the authority shall
1754 be deemed to be a public employer for purposes of chapter 258 of the General Laws.

1755 Section 28. (a) The authority may, if appropriate, make application to the United States
1756 Department of Housing and Urban Development or, as necessary, any other federal agency, to
1757 designate all or a portion of the NAS South Weymouth redevelopment area as an enterprise zone,
1758 pursuant to 42 U.S.C. § 11501 et seq., as amended, or an existing or successor statute for the
1759 purpose of creating jobs and encouraging development in the NAS South Weymouth
1760 redevelopment area.

1761 (b) The NAS South Weymouth redevelopment area and the towns of Abington, Rockland
1762 and Weymouth are hereby designated economic target areas as defined in section 3G of chapter
1763 23A of the General Laws. Pursuant to such designation, certain development projects within the
1764 NAS South Weymouth redevelopment area and the entirety of the towns of Abington, Rockland
1765 and Weymouth shall be eligible for tax deductions, credits and abatements and other economic
1766 incentives as provided for in sections 3D to 3G of said chapter 23A. The authority shall render
1767 such certifications as are required by law for the project within the NAS South Weymouth
1768 redevelopment area, including the designation of economic opportunity areas, and each town
1769 shall render such certifications within portions of the towns not included in the NAS South
1770 Weymouth redevelopment area. The designation of the NAS South Weymouth redevelopment

1771 area and the towns of Abington, Rockland and Weymouth as economic target areas shall be in
1772 addition to any other economic target areas that may be established pursuant to said section 3G
1773 of said chapter 23A. Further, notwithstanding any other general or special law, (i) the authority
1774 and (ii) any projects undertaken by any party within the NAS South Weymouth redevelopment
1775 area shall be eligible for any and all other financial and other assistance authorized by any
1776 general or special law intended to attract new growth, enhance infrastructure investment or
1777 incentives, or provide other economic development benefit to priority areas of the
1778 commonwealth, without the need for any specific designation of or approval of any portion of
1779 the NAS South Weymouth redevelopment area as an area suitable for, or having priority with
1780 regard to, economic development, or similar designations, however named or styled, under any
1781 current or future general or special law.

1782 Section 29. The authority shall be subject to all laws applicable to municipal
1783 redevelopment authorities created under section 4 of chapter 121B of the General Laws. In no
1784 event shall the authority be considered an “agency” for the purposes of the Massachusetts
1785 Environmental Policy Act Regulations, including as such term is defined in 301 CMR 11.02.

1786 Section 30. The authority or its agents may enter into project labor agreements covering
1787 construction performed by it consistent with its powers under this act.

1788 Section 31. The authority shall keep an accurate account of its activities including its
1789 receipts and expenditures. The authority shall prepare annual reports of its activities in the NAS
1790 South Weymouth redevelopment area during the preceding fiscal year and submit such reports to
1791 the governor, secretary, general court, advisory board, mayor of the town of Weymouth, the
1792 town manager of the town of Abington, the town administrator of the town of Rockland, the

1793 town council of the town of Weymouth, the boards of selectmen of the towns of Abington and
1794 Rockland and the town clerk of each of those towns. Each report shall set forth a complete
1795 operating and financial statement covering the authority's operations in the NAS South
1796 Weymouth redevelopment area during the previous year. The authority shall cause an audit of its
1797 books and accounts relating to the NAS South Weymouth redevelopment area to be made at least
1798 once in each fiscal year by certified public accountants. The audit shall be filed with the state
1799 auditor annually not later than 180 days after the end of the authority's fiscal year and shall be in
1800 a form prescribed by the state auditor. The state auditor may audit the authority's books and
1801 accounts in accordance with section 12 of chapter 11 of the General Laws. The state auditor may
1802 investigate the budget, finances, transactions and relationships of the authority at any time and
1803 may examine the authority's records and prescribe methods of accounting and the rendering of
1804 periodic reports. The audits of the authority shall be public records; provided, however, that the
1805 mayor of the town of Weymouth, the town manager of the town of Abington, or the town
1806 administrator of the town of Rockland may each conduct annual audits at the expense of the
1807 respective towns.

1808 Section 32. Chapter 40B of the General Laws shall not apply to the provision of
1809 affordable housing within the NAS South Weymouth redevelopment area. Such affordable
1810 housing within the NAS South Weymouth redevelopment area shall be governed by clause (1) of
1811 subsection (b) of section 14 and the zoning by-laws. None of the land located within the NAS
1812 South Weymouth redevelopment area, nor any of the housing which may be constructed thereon
1813 from time to time, shall be included in any calculation applicable to said chapter 40B with
1814 respect to any of the towns. This section shall continue in full force and effect following the
1815 dissolution of the authority pursuant to section 33.

Section 33. (a) The authority shall be dissolved upon: (i) the bond termination date; and (ii) the approval of the dissolution and administration agreement by the towns as described in subsection (b). Within 30 days after: (i) the bond termination date; and (ii) such approval of the dissolution and administration agreement, the board shall file a certificate acknowledging such dissolution with the state secretary. The dissolution of the authority shall take effect upon the filing of such certificate, subject to the applicable provisions of section 51 of chapter 155 of the General Laws. In connection with the application of said section 51 of said chapter 55, any real property owned by the authority at the time of dissolution shall be deemed to be distributed automatically to and become the property of the town in which it is located, consistent with the dissolution and administration agreement, and the personal property of the authority shall be equitably allocated to the towns according to the terms of the dissolution and administration agreement; provided, however, that the authority shall not issue any bonds after the date that is 1 year following the completion of the redevelopment of the NAS South Weymouth redevelopment area.

(b) At least 24 months prior to the bond termination date, the board shall prepare and distribute to the towns a dissolution and administration agreement. The dissolution and administration agreement shall provide, but shall not be limited to, the following: (i) provisions for the disposition of all real and personal property within the NAS South Weymouth redevelopment area which the authority owns or has an interest in on the bond termination date; (ii) provisions for the assumption of all contractual obligations, including all lease agreements of the authority, which do not expire on the bond termination date; (iii) provisions for the transfer and assumption by the towns of the authority's zoning administration, licensing and permitting authorities; and (iv) provisions for the resolution of any other matters relating to the authority

which may affect the interests of the towns. Within 120 days after receipt of the dissolution and administration agreement, the mayor of the town of Weymouth shall convene a meeting of the town council of the town of Weymouth and the boards of selectmen of the towns of Abington and Rockland shall convene a town meeting of their respective towns for the purpose of adopting by majority vote of the town council and each town meeting the dissolution and administration agreement. Each town shall vote to adopt or disapprove the agreement as submitted. No amendments to the agreement shall be made by the towns. Each town shall, within 30 days after adoption or rejection of the agreement at a town council meeting or a town meeting, as the case may be, provide the authority with a written notification stating whether the town council or town meeting adopted or rejected the agreement. Any town that has rejected the agreement shall have 1 year from the date of such disapproval to reconsider its decision and rescind its rejection and adopt the dissolution and administration agreement. Once a town adopts the agreement, it shall not thereafter vote to disapprove or reject it. If all 3 towns have not adopted the agreement at least 1 year prior to the bond termination date, the authority shall remain in existence and carry out its functions consistent with this act. If the towns fail to adopt the agreement, the general court may, at any time after the bond termination date, terminate the authority's existence, provide for the distribution of its assets and determine other provisions as required for the dissolution and administration agreement.

Section 34. (a) Notwithstanding any provision of this act to the contrary, the authority shall perform its obligations under the Parkway Financing MOA, including without limitation, reimbursement to the commonwealth of any "deficiency payment," as defined in the Parkway Financing MOA, which obligation of the authority shall constitute a general obligation of the authority for which the full faith and credit of the authority shall be pledged for the benefit of the

1862 commonwealth. The betterments, assessments, special assessments, fees and other charges
1863 established by the authority in accordance with this act shall be fixed and adjusted so as to
1864 provide revenues at least sufficient to pay, in addition to all other amounts set forth in section 18,
1865 any amounts that the authority may be obligated to pay or provide for, pursuant to the Parkway
1866 Financing MOA or the financing agreement referenced therein. The corporation may collect the
1867 data described in sections 3 and 4 of the Parkway Financing MOA for the purposes described
1868 therein.

1869 (b) The secretary may enter into amendments to the Parkway Financing MOA to allow
1870 for deficiency payments to be deferred or otherwise addressed if the secretary determines that
1871 such treatment is fiscally responsible and serves the public interest.

1872 (c) Additional financing by the commonwealth of “Parkway-Phase 2” and the “East Side
1873 Connectivity Improvements” shall be subject to the commonwealth’s capital plan and its
1874 statutory debt limit.

1875 Section 35. The authority shall not offer new bonds, including the refunding or
1876 refinancing of any outstanding indebtedness, after December 31, 2045 without first obtaining a
1877 two-thirds majority vote from the town council of the town of Weymouth, and the select boards
1878 of the towns of Abington and Rockland.

1879 Section 36. The authority and SSTDC shall be considered a state authority for the
1880 purposes of section 29K of chapter 29 of the General Laws and shall be considered a state entity
1881 for the purposes of section 97 of chapter 6 of the General Laws.

1882 SECTION 47. Section 45 of chapter 139 of the acts of 2001 is hereby amended by
1883 striking out the words “December 15, 2025”, inserted by section 17 of chapter 26 of the acts of
1884 2023, and inserting in place thereof the following words:- December 15, 2027.

1885 SECTION 48. Section 20 of chapter 449 of the acts of 2006 is hereby amended by
1886 striking out the words “December 15, 2025”, inserted by section 18 of said chapter 26, and
1887 inserting in place thereof the following words:- December 15, 2027.

1888 SECTION 49. Section 92 of chapter 194 of the acts of 2011 is hereby amended by
1889 striking out the words “December 15, 2025”, inserted by section 19 of said chapter 26, and
1890 inserting in place thereof the following words:- December 15, 2027.

1891 SECTION 50. Section 112 of said chapter 194 is hereby amended by striking out the
1892 words “December 15, 2025”, inserted by section 20 of said chapter 26, and inserting in place
1893 thereof the following words:- December 15, 2027.

1894 SECTION 51. Section 74 of chapter 10 of the acts of 2015 is hereby amended by striking
1895 out the words “December 15, 2025”, inserted by section 21 of said chapter 26, and inserting in
1896 place thereof the following words:- December 15, 2027.

1897 SECTION 52. Chapter 4 of the acts of 2021 is hereby amended by striking out section 9
1898 and inserting in place thereof the following section:-

1899 Section 9. Notwithstanding any general or special law to the contrary, the bonds that the
1900 state treasurer may issue pursuant to section 34 of chapter 383 of the acts of 2020 shall be issued
1901 for a term not to exceed 30 years. All such bonds shall be payable not later than June 30, 2065,

1902 as recommended by the governor in a message to the general court dated August 14, 2025 under
1903 section 3 of Article LXII of the Amendments to the Constitution.

1904 SECTION 53. Section 74 of chapter 2 of the acts of 2023 is hereby amended by striking
1905 out the words “December 31, 2024”, each time they appear, and inserting in place thereof, in
1906 each instance, the following words:- December 31, 2026.

1907 SECTION 54. Section 23 of chapter 26 of the acts of 2023 is hereby repealed.

1908 SECTION 55. Item 7008-1116 of section 2 of chapter 28 of the acts of 2023 is hereby
1909 amended by striking out the figure “2025”, as appearing in section 89 of chapter 248 of the acts
1910 of 2024, and inserting in place thereof the following figure:- 2026.

1911 SECTION 56. Item 1599-0026 of section 2 of chapter 140 of the acts of 2024, as
1912 amended by section 99 of chapter 9 of the acts of 2025, is hereby further amended by inserting
1913 after the words “Fido, Inc.” the following words:- and such funds shall be made available until
1914 June 30, 2026.

1915 SECTION 57. Item 3000-4060 of said section 2 of said chapter 140 is hereby amended
1916 by adding the following words:-

1917 General Fund...83.94%

1918 High-Quality Early Education & Care Affordability Fund...16.06%

1919 SECTION 58. Item 7008-0900 of said section 2 of said chapter 140, as amended by
1920 section 100 of chapter 9 of the acts of 2025, is hereby further amended by inserting after the
1921 word “organization”, the first time it appears, the following words:- and such funds shall be
1922 made available until June 30, 2026.

1923 SECTION 59. Said item 7008-0900 of said section 2 of said chapter 140, as so amended,
1924 is hereby further amended by inserting after the words “Business Association, Inc.” the
1925 following words:- and such funds shall be made available until June 30, 2026.

1926 SECTION 60. Item 8100-0102 of said section 2 of said chapter 140 is hereby amended
1927 by striking out the figure “\$49,000,000”, both times it appears, and inserting in place thereof, in
1928 each instance, the following figure:- \$55,000,000.

1929 SECTION 61. Section 127 of said chapter 140 is hereby amended by striking out the
1930 words “managed care organization reinvestment” and inserting in place thereof the following
1931 words:- Medicaid managed care organization.

1932 SECTION 62. Said section 127 of said chapter 140 is hereby further amended by striking
1933 out the words “total managed care organization services assessment” and inserting in place
1934 thereof the following words:- non-Medicaid managed care organization revenue.

1935 SECTION 63. Section 198 of said chapter 140 is hereby amended by striking out the
1936 words “June 30, 2025” and inserting in place thereof the following words:- June 30, 2026.

1937 SECTION 64. Section 222 of said chapter 140 is hereby amended by striking out
1938 subsection (a).

1939 SECTION 65. Item 1599-2625 of section 2A of chapter 1 of the acts of 2025 is hereby
1940 amended by inserting after the word “item”, the tenth time it appears, the following words:- ; and
1941 provided further, that the comptroller shall transfer \$5,995,058 from this item to the Federal
1942 Grants Fund for the purposes of item 4000-0004 in the Massachusetts management, accounting
1943 and reporting system.

SECTION 66. Item 0321-1510 of section 2 of chapter 9 of the acts of 2025, as amended by section 81 of chapter 14 of the acts of 2025, is hereby further amended by striking out the figure “\$2,000,000” and inserting in place thereof the following figure:- \$3,000,000.

SECTION 67. Item 0910-0200 of said section 2 of said chapter 9, as amended by sections 82 and 83 of chapter 14 of the acts of 2025, is hereby further amended by inserting after the words “indigent defendants”, the second time it appears, the following words:- ; provided further, that not later than February 27, 2026, the inspector general shall conduct an investigation and submit a report to the house and senate clerks, the joint committee on public safety and homeland security and the house and senate committees on ways and means that shall include, but shall not be limited to: (i) a detailed accounting of expenditures made by the sheriffs’ offices in fiscal year 2025; (ii) an analysis of sheriffs’ offices’ compliance with chapter 29 of the General Laws in fiscal year 2025; (iii) a review of spending by sheriffs’ offices on activities not specifically required by statute, case law or court order and how such spending has changed over time; (iv) an analysis of compensation levels and changes over the preceding 3 fiscal years, including comparisons among sheriffs’ offices and to the department of correction; and (v) recommendations to ensure compliance with said chapter 29, if necessary, among sheriffs’ offices; provided further, that each sheriff’s office shall comply with all requests from the office of the inspector general for any information deemed necessary to conducting said investigation and submitting said report, including, but not limited to, requests for the production of records; provided further, that the sheriffs’ offices shall not receive supplemental funding beyond the funding appropriated in this act prior to the submission of said report; provided, however, that funds shall be made available to the sheriffs’ offices for: (1) section 87A of chapter 127 of the General Laws funded through the Communications Access Trust Fund established in section

1967 2XXXXX of said chapter 29; and (2) facilities that treat men with alcohol or substance use
1968 disorder under sections 1 and 35 of chapter 123 of the General Laws.

1969 SECTION 68. Said item 0910-0200 of said section 2 of said chapter 9, as so amended, is
1970 hereby further amended by striking out the figure “\$6,256,039” and inserting in place thereof the
1971 following figure:- \$6,756,039.

1972 SECTION 69. Item 2300-0100 of said section 2 of said chapter 9 is hereby amended by
1973 inserting after the word “Chelmsford” the following words:- ; provided further, that not less than
1974 \$87,373 shall be expended by the department’s office of biodiversity for efforts to increase
1975 biodiversity and to protect and prepare vulnerable maritime ecosystems from climate impacts
1976 and unlock their potential for carbon sequestration.

1977 SECTION 70. Said item 2300-0100 of said section 2 of said chapter 9 is hereby further
1978 amended by striking out the figure “\$2,547,475” and inserting in place thereof the following
1979 figure:- \$2,634,848.

1980 SECTION 71. Item 7506-0100 of said section 2 of said chapter 9 is hereby amended by
1981 inserting after the word “College” the following words:- ; provided, that not less than \$75,000
1982 shall be expended for a workforce development program called Skill Surge at Holyoke
1983 community college.

1984 SECTION 72. Notwithstanding section 16B of chapter 62C of the General laws, no
1985 penalty shall be imposed for an underpayment of tax due on or after January 1, 2024 pursuant to
1986 said section 16B of said chapter 62C if the penalty would cause undue financial hardship, as
1987 determined by the commissioner of revenue. The commissioner shall publish guidance related to
1988 undue financial hardship not later than 30 days after the effective date of this act.

1989 SECTION 73. Notwithstanding section 68 of chapter 118E of the General Laws or any
1990 other general or special law to the contrary, the secretary of health and human services shall
1991 implement the health care-related assessment on managed care organization services, established
1992 under said section 68 of said chapter 118E, as a broad-based and uniform assessment, in
1993 accordance with 42 CFR 433.68(b), with the managed care organization services assessment
1994 rate, as such term is defined in section 64 of said chapter 118E, implemented as the single broad-
1995 based and uniform rate applicable to all managed care organization services subject to
1996 assessment, as such term is defined in said section 64 of said chapter 118E. Upon converting the
1997 health care related assessment on managed care organization services to a broad-based and
1998 uniform assessment applicable to all managed care services subject to assessment, as such term
1999 is defined in said section 64 of said chapter 118E, the initial managed care organization services
2000 assessment rate shall be equal to the rate that had been applicable to the tax group containing
2001 commercial managed care services immediately preceding the implementation of the broad-
2002 based and uniform application of the assessment. The managed care organization services
2003 assessment rate for each calendar year, beginning the first January 1 following the conversion of
2004 the health care related assessment on managed care organization services to a broad-based and
2005 uniform assessment, shall be broad-based and uniform across all managed care services subject
2006 to assessment and shall continue to be implemented in a manner consistent with 42 CFR 433.68.

2007 SECTION 74. Notwithstanding section 2 of chapter 128A of the General Laws, sections
2008 1, 2, 2A, 4 and 9 of chapter 128C of the General Laws or any other general or special law to the
2009 contrary, the running race horse meeting licensee located in Suffolk county licensed to conduct
2010 live racing pursuant to said chapter 128A and simulcast wagering pursuant to said chapter 128C
2011 in calendar year 2025 shall remain licensed as a running horse racing meeting licensee and shall

2012 remain authorized to conduct simulcast wagering pursuant to said chapter 128C until December
2013 15, 2027; provided, however, that the days between January 1, 2025 and December 31, 2027
2014 shall be dark days pursuant to said chapter 128C and the licensee shall be precluded from
2015 conducting live racing during that period unless it applies for and is granted a supplemental live
2016 racing license pursuant to said chapter 128A; provided further, that the licensee shall not
2017 simulcast or accept a wager on greyhound dog racing on or after August 10, 2023 pursuant to
2018 section 9 of said chapter 128C; provided further, that all simulcasts shall comply with the
2019 Interstate Horse Racing Act of 1978, 15 U.S.C. 3001 et seq. or other applicable federal law;
2020 provided further, that all simulcasts from states that have racing associations that do not require
2021 approval in compliance with the Interstate Horse Racing Act of 1978, 15 U.S.C. 3004(a)(1)(A)
2022 shall require the approval of the New England Horsemen's Benevolent & Protective Association
2023 prior to being simulcast to a racing meeting licensee within the commonwealth; and provided
2024 further, that if the association agrees to approve the simulcast for 1 racing meeting licensee, it
2025 shall approve the simulcast for all otherwise eligible racing meeting licensees.

2026 SECTION 75. Notwithstanding any general or special law to the contrary, section 18 of
2027 chapter 28 of the acts of 2023 shall not be in effect for the purposes of establishing the annual
2028 spending threshold set pursuant to subsection (f) of section 2BBBBBB of chapter 29 of the
2029 General Laws for the fiscal year ending June 30, 2027.

2030 SECTION 76. Notwithstanding any general or special law to the contrary, to the extent
2031 that immunization recommendations and requirements established in the commonwealth are
2032 conditioned upon alignment with the recommendations made by the Advisory Committee on
2033 Immunization Practices of the federal Centers for Disease Control and Prevention, the
2034 commissioner of public health shall review said recommendations and requirements established

2035 in the commonwealth and shall, in consultation with the vaccine program advisory council
2036 established in section 24N of chapter 111 of the General Laws, establish alternative standards as
2037 the commissioner may deem necessary to assure the maintenance of public health and the
2038 prevention of disease in the commonwealth.

2039 SECTION 77. Notwithstanding any other general or special law to the contrary,
2040 employees of the economic development and industrial corporation of Boston who became
2041 employed by the city of Boston on or after June 29, 2024 with no break in service between the
2042 corporation and the city shall have a 1-time opportunity to purchase as creditable service in the
2043 Boston retirement system prior service to such organization rendered before the member joined
2044 the system; provided, that prior to the date any retirement allowance becomes effective, the
2045 member shall pay into the annuity savings fund of the system in 1 sum, or in installments, upon
2046 such terms and conditions as the system may prescribe, make-up payments of an amount equal to
2047 that which would have been withheld as regular deductions from the member's regular
2048 compensation had the member been eligible for membership and been a member of the system
2049 during such previous period, together with buyback interest. Former employees of the economic
2050 development and industrial corporation shall be members in service of the system when they
2051 apply for the purchase of service credit and may request an estimate of the cost of their service
2052 purchase from the system prior to becoming an employee of the city of Boston.

2053 SECTION 78. Notwithstanding any general or special law to the contrary, at the direction
2054 of the secretary of administration and finance, the comptroller shall make tax revenue collected
2055 from capital gains income above the threshold established in section 5G of chapter 29 of the
2056 General Laws in fiscal year 2025 available to the General Fund in the amount necessary to
2057 eliminate any deficits in the budgetary funds pursuant to section 5C of said chapter 29. After

satisfying the previous provision, the comptroller shall transfer any remaining excess capital gains income as follows: (i) 90 per cent to the Transitional Escrow Fund established in section 16 of chapter 76 of the acts of 2021, as amended by section 4 of chapter 98 of the acts of 2022; (ii) 5 per cent to the Commonwealth's Pension Liability Fund established in paragraph (e) of subdivision (8) of section 22 of chapter 32 of the General Laws; and (iii) 5 per cent to the State Retiree Benefits Trust Fund established in section 24 of chapter 32A of the General Laws.

SECTION 79. Notwithstanding any general or special law to the contrary, in fiscal year 2025, the comptroller shall transfer \$10,000,000 from the General Fund to the Massachusetts Life Sciences Center established in section 3 of chapter 23I of the General Laws for programming and operations that advance efforts related to life sciences and spur economic growth in the commonwealth.

SECTION 80. The salary adjustments and other economic benefits authorized by the following collective bargaining agreements shall be effective for the purposes of section 7 of chapter 150E of the General Laws:

(1) the agreement between the University of Massachusetts and the Clerical/Technical Unit (CTU), MTA, Unit L92, effective from July 1, 2024 through June 30, 2027;

(2) the agreement between the Barnstable County Sheriff's Office (BCSO) and the Barnstable County Captain Union, National Correctional Employees Union (NCEU), Unit L152, effective from July 1, 2024 through June 30, 2027,

(3) the agreement between the Berkshire County Sheriff's Office (BCSO) and the National Correctional Employees Union, Unit SB1, effective from July 1, 2024 through June 30, 2027,

2080 (4) the agreement between the Barnstable County Sheriff's Office and the National
2081 Correctional Employees Union Local 150, Unit S10, effective from July 1, 2024 through June
2082 30, 2027;

2083 (5) the agreement between the Dukes County Sheriff's Office and the Massachusetts
2084 Correction Officers Federated Union (MCOFU), Unit SD1, effective from July 1, 2025 to June
2085 30, 2028;

2086 (6) the agreement between the University of Massachusetts and the Massachusetts
2087 Teachers Association/Department Chairs (DCU), Boston Campus, Unit B50, effective from July
2088 1, 2024 through June 30, 2027; and

2089 (7) the agreement between the Plymouth County Sheriff's Office and the New England
2090 Police Benevolent Association (NEPBA) Local 193, Unit SP5, effective from July 1, 2024
2091 through June 30, 2027.

2092 SECTION 81. Section 72 is hereby repealed.

2093 SECTION 82. Sections 15, 24 to 27, inclusive, 61, 62 and 73 shall take effect on the later
2094 of: (i) the effective date of amendments to 42 CFR 433.68 disallowing the higher taxation of
2095 Medicaid taxable units as compared to non-Medicaid taxable units; or (ii) the end of any
2096 federally established or approved transition period applicable to the health care related
2097 assessment on managed care organization services, established under section 68 of chapter 118E
2098 of the General Laws, as amended by section 130 of chapter 140 of the acts of 2024. The
2099 executive office of health and human services shall notify the clerks of the house of
2100 representatives and the senate not later than 10 days after the effective date pursuant to this
2101 section.

SECTION 83. Section 81 shall take effect on March 1, 2026.